APARTMENT RENTAL CONTRACT

This Apartment Rental Contract is a lease between the Owner of the apartment community and the Residents who are leasing the apartment. The General Lease Provisions that follow the signatures, and any separate addenda signed by the parties, are incorporated into and become part of this lease. Paragraph numbers on this page correspond to paragraph numbers in the General Lease Provisions.

A. PARTIES AND PREMISES

Lease Date _____ Apartment No. _____

Management ☐ Owner ☐ Management Co. as agent for Owner

Community Name _____

Apartment Address _____

Residents / Tenants _____

_____

Other Occupants _____

B. LEASE TERM (Par. 1)

Term _____ Months and _____ Days _____

Beginning Date _____ Ending Date _____

C. RENT (Par. 3)

Rent Due Monthly $ _____ Month-to-Month Fee $ _____

Pro-Rated Rent Due at Lease Signing $ _____

Dates of Prorated Rent _____ to _____

Rent is Payable to _____

D. LATE FEES AND INSUFFICIENT FUNDS FEES (Par. 4)

Date on Which Rent Is Late _____

Amount of Late Fee $ _____ or _____ % of Rent

Returned / Insufficient Check Fee ☐ Service Fee of $ _____ or ☐ 5% of check + bank fee

Bank Service Fee of $ _____ *(amount charged by bank to Management for charge back)*

E. LEASE FEES AND SECURITY DEPOSIT (Par. 5)

Re-Key Lock Charge $ _____ Non-Refundable Lease Fee $ _____

Security Deposit $ _____ Bank Name (where deposit kept) _____

F. RENEWAL, NON-RENEWAL, AND EARLY TERMINATION (Par. 6, 7)

Notice required to non-renew prior to end of initial lease term _____ Days

Renewal Period ☐ Month to Month (1 month at a time) ☐ Bi-Monthly (2 months at a time)

Notice to End Renewal ☐ 30 days to end Month to Month ☐ 60 days to end Bi-Monthly

Early Termination Option — notice required for electing early termination _____ Days Written Notice

G. DISCLOSURE OF OWNER OR MANAGING AGENT (Par. 9)

Name of Managing Agent or Owner _____

Address of Agent Authorized to Manage Community _____

Name of Owner or Registered Agent for Notices/Lawsuits _____

Address of Owner or Registered Agent for Notices/Lawsuits _____

Corporate Name of Real Estate Licensee **License No.**

H. FLOOD DISCLOSURE AND SPECIAL STIPULATIONS (Par. 17, 36)

Flood Disclosure ☐ **Not Applicable** ☐ **Apartment has been flooded previously**

Special Stipulations

Any special stipulations specified above control and supersede conflicting provisions in the text of this lease (Par. 36).

I. SIGNATURES OF PARTIES

MANAGEMENT

Name of Owner or Management Company

Signature of Owner or Management Company

Title

RESIDENTS

Resident Signature

Resident Signature

Resident Signature

Resident Signature

GENERAL LEASE PROVISIONS

General Lease Provisions

The Owner is the landlord of the property and the Resident is the tenant. The apartment community is managed for the Owner by its Managing Agent. The lease is legally effective on the date it is signed, whether it was signed before or after the Resident moves into the apartment. There is no conditional three-day right to rescind or void the contract once it is signed, and the Resident is legally bound to pay all rent, fees, and other charges that come due, regardless of whether the Resident continues to occupy the apartment. The Lease Date is the day on which the lease was signed and became effective as a contract. The lease is a legally binding contract that creates the relationship of landlord and tenant for the full duration of the lease term at the rental rate stated above. Any addenda signed by the Owner and Resident are also part of this Apartment Rental Contract. The Owner provides the apartment to the Resident in exchange for payment of monthly rent. The Resident's obligation to pay rent is independent of any other obligation of the Landlord in the lease. The terms, conditions, and payment amounts listed on the first page correspond to the paragraphs below. **Important Information About Ending The Lease and Management's Right to Increase the Rent During Any Extension Period.** This lease does not end automatically at the end of the initial lease term. The Resident must give a proper non-renewal notice to end the lease as provided in Par. 6, or the lease will be extended or renewed for an additional period of time as stated in Par. 6. The lease continues to renew until the proper non-renewal notice is given. If the lease is renewed or extended, the Resident will be responsible for paying an additional Month-to-Month Fee and may also pay a higher rent than the rent specified in Par. 3, if Management gives notice of the higher rent amount. The apartment shall only be occupied by the Residents and the occupants listed on page 1, and any other occupants not listed above are unauthorized to live in the apartment.

1. Term

The initial lease term is for the number of months and days specified in Par. 1. The initial term begins and ends at noon on the days specified in Par. 1 but will be automatically renewed on either a month-to-month or bi-monthly basis as stated in Par. 6. RESIDENT MAY NOT TERMINATE THIS LEASE PRIOR TO THE END OF THE INITIAL TERM EXCEPT IN STRICT COMPLIANCE WITH PARAGRAPH 7 or as otherwise provided by law.

2. Possession

Rent shall abate until possession is granted to Resident. Resident may void or rescind this lease if possession is not granted within seven (7) days from the start of the lease term. Management is not liable for any delay in possession. Resident shall give Management written notice of his or her election to void or rescind the contract.

3. Rent

Resident shall pay rent in advance on the 1st day of each month at the management office as provided in Par. 3. The first month's prorated rent shall be due at the time this lease is signed as provided in Par. 3. If this lease is extended or renewed under Paragraph 6 without signing a new lease, Resident shall owe a month-to-month fee in addition to the monthly rent due during any extension or renewal period. CASH PAYMENTS WILL NOT BE ACCEPTED, AND NO MANAGEMENT EMPLOYEE IS AUTHORIZED TO ACCEPT A CASH PAYMENT UNDER ANY CIRCUMSTANCES. RESIDENT MAY NOT RELY ON ANY STATEMENT MADE TO HIM BY A MANAGEMENT REPRESENTATIVE THAT CASH WILL BE ACCEPTED. All rent shall be paid by personal check, cashier's check, or money order. Management shall have the right to establish or provide for payment by credit card, debit card, electronic funds transfer, online payment portal, or designated online payment system and software, but Resident does not have the right to make payments by these means unless specifically authorized by Management. Management shall have the right to designate the specific manner or form of payment that will be accepted, and no other form of payment shall be acceptable other than those specified by Management. Checks and money orders shall be made payable to the order of the business entity specified in Par. 3. Third-party checks (those which are made payable to someone other than Management) and partial payments are not allowed. All other damages, utilities, fees, or charges owed by Resident and due under this lease are considered to be additional rent. The amount of rent specified in Par. 3 is the amount due each month unless Management has given the Resident a rental concession or discount from the rent, either in the Special Stipulations to this lease or in a separate addendum. If there are rental concessions granted, the Resident will or may lose them if in default or breach of this lease and will be obligated to pay the full amount of rent specified in Par. 3. If in default or breach of the lease, the Resident may have to repay the rental concessions under certain specified conditions.

4. Late Payments and Checks with Insufficient Funds

Time is of the essence. In Par. 4, late fees shall be due in the amount specified. After close of business on the last day of the grace period specified. Resident shall pay Management an insufficient funds check service fee for each returned or NSF check, plus an additional fee equal to the fee charged to Management by the bank. If no box is checked in Par. 4 that specifies the amount of the service fee, then the insufficient funds service fee is five percent (5%) of the face amount of the check, plus the fee charged by the bank. At Management's option, all late rent, NSF checks, and future rents due after an NSF check must be paid by money order or certified funds from a bank. The parties agree that bank service, NSF, and late fees are reasonable compensation for delay, administrative costs, and time in collecting past due rent, are not penalties, and that such costs are difficult to estimate accurately.

5. Lease Fees & Security Deposit

Resident must pay the amounts specified in Par. 5 for re-keying locks, any non-refundable lease fees, or security deposits. A re-key lock fee is due for each lock that must be re-keyed if all keys are not returned. The non-refundable lease fee is not a security deposit, is not refundable, and does not reduce Resident's liability for unpaid rent, damages exceeding normal wear and tear, or other charges that come due under the lease. Any security deposit will be refunded as provided by law but may be applied to any charges due under this lease. The deposit will either be protected by a surety bond on file with the Clerk of Superior Court or deposited in the bank specified in Par. 5. Interest earned on such deposits belongs to Management. Management shall have the right to apply any security deposit held to money or a debt owed by the Resident to Management. Management is not restricted to or limited in how the security deposit is applied if money is owed, and the deposit may applied to rent, damages exceeding normal wear and tear, unpaid utilities, or any other fee, charge, or debt owed by Resident. Management may apply a pet or animal deposit to unpaid rent or damages exceeding normal wear and tear that were not caused by a pet or animal. Resident shall have no right to use or designate a security deposit as payment of rent or other fees and charges which are due, as provided by law. Resident agrees to cooperate with Management in scheduling and performing Move-In and Move-Out Inspections and noting any existing damages or objecting to Management's list of damages exceeding normal wear and tear.

6. Renewal Term and Notice of Non-Renewal to End the Lease

Either party may non-renew and terminate this lease at the end of the initial term by giving a written non-renewal notice prior to the end of the initial lease term. If such non-renewal notice is not given, then this lease will be extended as provided in Par. 6 on either a Month-to-Month basis (one month at a time) until either party gives a proper 30-day notice; or on a Bi-Monthly basis (two months at a time) until either party gives a proper 60-day notice in writing that terminates the lease. Unless otherwise allowed by Landlord, the lease shall terminate at the end of a calendar month. Management shall have the right to increase the rent due in any extension or renewal term by giving written notice at least 15 days prior to the date on which a non-renewal notice must be given in order to end the initial term or any subsequent renewal or extension period. If not specified in Par. 6, then a 30-day written notice is required to end the initial term or any renewal or extension period as of the end of a calendar month. Management employees are not authorized to accept a verbal notice of non-renewal or termination from the Resident, and the Resident has no right to rely on a Management employee's statement that a verbal notice is acceptable. Resident's non-renewal or termination notice must be in writing, dated, signed, and specify the move-out date. Resident should confirm the lease term in Par. 6 only with the authorized signature of a Management representative using Management's notice of intent to vacate form. Resident should keep a signed receipt of the non-renewal notice for his personal records in case of any dispute as to whether such notice was given and received. If Resident does not obtain a signed receipt of such notice from Management, or if Management does not have a signed original non-renewal notice from Resident, then it will be presumed that Resident failed to give a proper written notice.

7. Resident's Early Termination Option

Resident can end all liability for rent under this lease (but not liability for damages exceeding normal wear and tear, or liability for unpaid utilities) and vacate before the end of the initial lease term stated in Par. 7 by doing all of the following things required in this paragraph. If all of the following conditions are not performed, then the lease remains in effect for the full term, and Resident shall be liable for breach of the rental agreement as provided in Paragraph 26. If Resident skips, abandons, or is evicted from the apartment without complying with this paragraph, then Resident is in default and responsible for rent and liquidated damages (if applicable) as provided under Paragraph 26, any other fees or charges due, and all damages and cleaning fees in excess of normal wear and tear. Management employees are not authorized to make a verbal statement that waives the notice and termination fees, and the Resident has no right to rely on a Management employee's statement that Resident will not have to pay such fees or comply with this provision in order to terminate the lease early. Any waiver of the notice or fees required under this provision must be in writing, dated, and signed by all parties. Resident's election to use or not use this provision is purely voluntary. To end the lease early, Resident MUST do EACH of the following: 1) pay all monies currently due; 2) give written notice in the amount specified in Par. 7 of intent to vacate prior to the first day of the month and to take effect as of the last day of a calendar month; 3) pay all rent due through the notice period preceding the early termination date; 4) pay an additional early termination or lease cancellation fee equal to one month's rent as liquidated damages; vacate the leased premises on or before the specified termination date, remove all occupants and possessions, and physically hand the keys to a Management representative; and 5) abandon, waive, and release a claim to the return of any security deposit, which shall become Management's. If the length of the Early Termination notice is not specified in Par. 7 on the first page, then a 30-day written notice is required. Resident can move out earlier than the termination date following the notice period in Par. 7, but Resident must turn in all keys, remove all occupants and personal property, pay all rent due through the required non-renewal notice period, pay the one-month termination or lease cancellation fee, and comply with all other requirements. Keys must be physically handed to a representative of Management and may not be left in the apartment or a night rent drop box. If Resident elects to exercise his or her right to Early Termination, Resident is not entitled to a refund of any rent, notice or termination fees, or security deposit, even if the apartment is re-let to a new Resident prior to the end of the notice period. Resident's election to exercise this early termination option either by giving proper notice and paying all sums due or by giving proper notice and signing an agreement to terminate early and pay the sums due at a later date are binding and shall not be reduced or set-off by any money or rent Management receives from re-letting the apartment to a new or subsequent Resident.

Military Transfers and Lease Terminations

A Resident (including a Resident's spouse) who is a service member on active duty or is called to active duty in the regular or reserve component of the U.S. Armed Forces, U.S. Coast Guard, or National Guard shall have the right to end this Apartment Rental Contract early by giving a 30-day written notice, paying all rent due through the notice period, and providing a copy of the official military orders or written verification signed by the service member's commanding officer or by providing base housing orders as provided by law, if the service member is: (1) ordered to federal duty for a period of 90 days or longer; (2) receives a permanent change of station orders to move at least 35 miles away from the rental housing; (3) is released from active duty after leasing housing and must move 35 miles or more away from the service member's home of record prior to entering active duty; (4) after entering into this rental agreement, the service member becomes eligible to live in government quarters or the failure to move to government quarters will result in a forfeiture of the service member's basic allowance for housing; (5) receives temporary duty orders or temporary change of station orders or state active duty orders for a period exceeding 60 days that is at least 35 miles away from the location of the rental housing; or (6) receives orders after signing the lease but before taking possession of the rental housing.

Domestic Violence and Lease Terminations

A resident who is a victim of domestic violence shall have the right to end this Apartment Rental Contract by giving a 30-day written notice, paying all rent due through the notice date to protect resident or his or her minor child. To terminate this lease early due to domestic violence, resident must return possession to Management by returning the keys and produce the following required documents to Management: 1) if Resident obtains a Temporary Protective Order (TPO) ex parte, then resident must also produce a copy of a police report to accompany the order; 2) if the TPO is not ex parte or the order is a permanent protective order, then resident must produce the order granting protection from family violence. If resident obtains a family violence protective order for either themselves and/or their child, who may not be a tenant or a named occupant on the lease, resident may provide a 30-day written notice and terminate the tenancy, provided the required documents are given to Management and their keys are returned. If resident vacates the premises immediately after giving proper notice to terminate the lease due to domestic violence and providing the required documents to Management, the resident remains liable for all rent, utilities, and other charges due for an additional 30 days from the date resident gives notice, produces the required documents, vacates, and returns the keys to Management; however, resident shall not be required to pay any termination fee or liquidated damage fee. If resident executes this lease but has not yet taken possession of the premises, then resident may terminate the lease prior to taking possession by providing at least 14 days written notice and providing a copy of the family violence order and a copy of the police report, if the order was obtained ex parte. Any co-tenant and guarantor who is the alleged aggressor or accused of family violence shall remain liable to the terms of the lease even when the victim of family violence properly terminates the lease and vacates.

8. No Assignment / Subletting

Resident may not sublet or assign the lease.

9. Disclosure Notice of Owner or Managing Agent and Equal Housing Opportunity Policy

The name and address of company or party authorized to manage the apartment community for the owner is specified in Par. 9. The name and address of the owner or owner's registered agent who is authorized to receive notices and lawsuits against the Landlord is specified in Par. 9. Lawsuits filed against the owner or Management shall be filed and served as provided by law or as contractually agreed to by Resident. The corporate name of the licensed managing agent and broker and broker's license number as required by applicable real estate commission rules is specified in Par. 9. **Equal Housing Opportunity Policy.** The apartment owner and Management provide equal housing opportunity for qualified applicants and do not discriminate on the basis of race, color, religion, sex, national origin, familial status, disability, or any other legally recognized status. It is the owner's and Management's policy to provide reasonable accommodations in the apartment community's operational policies and procedures and to permit the Resident to make reasonable modifications that are necessary for the Resident and related to the disability for persons with a demonstrated disability. The Resident must request and obtain permission from the owner or management for any accommodation or modification prior to implementing the same. In general, the cost or expense of physical modifications to the apartment or apartment community is the responsibility of the Resident, unless applicable law requires the owner or Management to absorb or be responsible for the cost of such modifications. A Resident or occupant with a demonstrated disability is allowed to have an assistance animal to assist with the person's disability. A disabled Resident or occupant is allowed to have an assistance animal which has not been trained as a service animal unless the animal has a history of dangerous, vicious, or unsafe behavior. If the nature of the disability is not obvious or apparent or the manner in which the animal will provide assistance is not clear, Management has the right to request additional information regarding how the animal will assist with the resident's disability. The Resident does not have an absolute right to the specific accommodation or modification requested, and Management has the right to offer an substitute or alternate accommodation or modification with conditions that will provide adequate assurance for the safety, health, and well being of other Residents, occupants, social guests, invitees, and Management employees. No Additional Rent, Non-refundable Fee, or Animal Security Deposit is required from Residents or occupants who are disabled and have an approved service or assistance animal; however, the Resident is responsible for any and all damages and cleaning fees exceeding normal wear and tear caused by such animal.

10. Utilities Are Resident's Responsibility

Resident is responsible for payment of all natural gas, electricity, water and sewer, telephone, cable, satellite, or other utilities and services to the apartment unless specified otherwise in Paragraph 34 or in a utility addendum which is made a part of this lease. Resident gives Management the right to select any utility provider and change the same without notice. Resident shall promptly establish all utility and service accounts to be paid by Resident in his name at the start of the lease and shall not allow water and sewer, electricity, or natural gas to be shut off or billed to Management. Resident shall promptly pay any billing for utilities or other services charged to Management upon notification. Resident's failure to pay all utility services or to establish an account with a utility provider is a material breach of the lease for which Management has the right to terminate the right of occupancy or lease. **Important Disclosure Regarding Management's Right to Select the Natural Gas Marketer (Provider).** Resident (the Tenant) authorizes Management (the Landlord) to act as Resident's agent for the limited purpose of selecting the Resident's natural gas marketer, to authorize the natural gas marketer to obtain credit information on the Resident, if required by the marketer, and to enroll the Resident on the marketer's standard variable price plan for which the Resident is eligible, unless the Resident chooses another price plan for which he or she is eligible. Resident acknowledges that Management may have a business relationship with the natural gas marketer that may provide for a financial or other benefit to Management in exchange for the Resident's enrollment with the Marketer.

11. Fire and Other Casualty

This lease will end if the apartment is uninhabitable due to fire as long as the fire was not caused by or the responsibility of Resident or Resident's occupants, family, or social guests. If Resident or his occupants, family, or social guests were responsible for the fire and the premises are uninhabitable, then Resident must vacate the apartment and will still remain liable for the rent and damages. Management shall have the right to terminate the occupancy or lease of Resident if Resident or Resident's occupants, family, social guests, or invitees caused or were responsible for causing a fire to the apartment or any portion of the apartment community. Resident has no right to transfer to another apartment in the community or to remain in the apartment community if Resident or Resident's occupants, family, social guests, or invitees were responsible for or caused the fire. Resident may be eligible for transfer to another apartment in the apartment community if the Resident is qualified, there is a suitable apartment available, and Resident or Resident's occupants, family, social guests, and invitees did not cause the fire. Resident is responsible for the cost of repair, replacement cost, and all expenses required to repair or replace the equipment, building, or property damaged by a fire which Resident or Resident's occupants, family, social guests, or invitees caused. Resident is liable to and shall indemnify, defend, and hold harmless Management and the owner for any damages or repairs caused by a fire which was caused by Resident or Resident's occupants, family, social guests, and invitees. This lease shall end if the premises are destroyed or otherwise rendered uninhabitable due to an Act of God or any other catastrophic event or casualty that was not the responsibility of Resident or Resident's occupants, family, social guests, or invitees. The Resident shall not continue to occupy an apartment which is rendered uninhabitable due to fire, Act of God, or other catastrophic casualty and must remove all personal property and return possession to Management.

12. Hold Over / Trespass

Resident must promptly vacate the apartment and deliver possession and all keys to Management upon any termination or non-renewal of this lease. Keys must be physically handed to a representative of Management and may not be left in the apartment or in the overnight rent drop box at the Management office. The apartment must be delivered to Management in clean condition and good repair. If Resident does not vacate the premises and return possession to Management after termination, non-renewal, or expiration of the lease, then Resident shall pay to Management rent at two (2) times the current rental rate for each day held over past the termination date. After termination, non-renewal, or expiration of the lease, Resident is a tenant at sufferance. After vacating the premises based on non-renewal, termination, eviction, or upon receiving a criminal trespass notice from Management, Resident shall not return to any portion of the apartment community. Resident shall not permit entry of any person as his social guest or invitee if notified that his guest's or visitor's presence in the apartment community is subject to criminal trespass. Management may terminate the lease or right of possession of any Resident who allows an unauthorized person access to his apartment or the community in violation of this provision or paragraph 14. Management's rights under this paragraph shall continue and survive independently beyond expiration or termination of the lease or Resident's right of occupancy of the apartment.

13. Right of Access

Management may enter the apartment without notice during reasonable hours to inspect, maintain, and repair the premises. Management may enter the apartment at any time without notice to prevent injury or damage to persons or property. Resident authorizes Management to show the apartment to prospective Residents once Resident has given or received a notice of non-renewal or termination.

14. Resident's Use of the Apartment and Conduct

Resident shall use the apartment and apartment community only for residential purposes and not for business or commercial purposes. Resident, all occupants, and Resident's family, social guests, and invitees must comply with all laws. No portion of the apartment or apartment community shall be used by Resident or Resident's occupants, family, social guests, or invitees for any disorderly, disruptive, abusive, or unlawful purpose. Nor shall they be used so as to disrupt the quiet enjoyment of any other Resident or their occupants, family, and social guests. Resident and Resident's occupants, family, social guests, and invitees shall not commit any crime in the apartment community. Resident is liable for the conduct of and for any damages exceeding normal wear and tear caused by his family, occupants, social guests, and invitees. Resident shall not allow his occupants, family, social guests, and invitees to commit a crime or violation of the lease and addenda and must take affirmative, corrective action and notify Management of any such violation or misconduct. The sale, manufacture, distribution, or possession of any illegal drugs in the apartment community is prohibited. Resident must maintain the apartment in a clean and sanitary condition and must not cause or allow any damages exceeding normal wear and tear or infestation of vermin, insects, rodents, or other pests. Noxious or offensive smells are not permitted, and Resident shall be liable for damages exceeding normal wear and tear for the repair or replacement of any carpet, flooring, ceiling, or walls that are permeated with noxious or offensive odors, water, or mold. Resident shall not leave or dispose of trash, garbage, or other materials in hallways, breezeways, patios, balconies, or common areas of any portion of the apartment building or community. Resident shall promptly take trash, garbage, or refuse to the proper dumpster, compactor, or trash collection area and properly dispose of organic and inorganic material as provided by law and as provided by the community rules. Resident and Resident's occupants, family, social guests, and invitees shall abide by and follow all community rules and regulations. Management shall have the right to prohibit smoking of cigarettes, pipes, cigars, or tobacco inside the apartment or any portion of the apartment community property under its community rules and regulations. Smoking of tobacco products in the apartment is prohibited unless expressly authorized and allowed by the community rules and regulations. Resident shall operate all motor vehicles in a safe and lawful manner in the apartment community. Resident shall not violate any parking rules and regulations and shall not exceed 15 mph in any parking lot, street, exit, or entrance of the apartment community. Resident must park only in authorized spaces and places and shall not park at any place that obstructs traffic, is unsafe, or is prohibited. Resident shall not operate, park, or store any illegal, unauthorized, or uninsured motor vehicle or equipment on any portion of the apartment community. Resident shall not abandon a motor vehicle in the apartment community. Resident shall not store, keep, or dispose of any substance or material on any portion of the apartment community that is hazardous to the health, safety, or welfare of any person. Resident shall not dispose of any batteries, chemicals, environmentally hazardous, or unsafe material in any trash receptacle, dumpster, compactor, or any portion of the apartment community. Resident, and Resident's occupants, family, social guests, and invitees, shall act and communicate with the apartment owner, Management, Management employees, Residents, business social guests of Management, and all other persons in a lawful, courteous, and reasonable manner. Any form of verbally or physically abusive, intimidating, or aggressive behavior directed at the apartment owner, Management, Management employees, or any other person is prohibited. Resident, his social guests and occupants shall not interfere with the daily business operations of the apartment community or job duties of Management or its employees. When notified by Management, Resident shall be prohibited from entering or contacting any Management or corporate office or employee and must conduct all further communications in writing. Resident shall not distribute petitions, flyers, or solicitation notices to other Residents in any manner other than through lawful use of the United States mail. Resident is prohibited from committing business libel or slander or making untruthful, unfair, or misleading statements to others about the apartment owner, Management, Management employees, or the apartment community. Resident shall not commit waste to the apartment or apartment community and shall not commit any act nor fail to take any action that would endanger the life, health, safety, welfare or property of any other person in the apartment community. Resident must allow Management and vendors access to the apartment for the purpose of making repairs, performing service or maintenance, inspecting, and taking all other action related to the ongoing business operation of the apartment community. Resident shall not cause or allow an infestation of bed bugs in the apartment. Resident shall not bring abandoned or discarded furniture, clothing, bedding, or other personal property into the apartment as it could introduce an infestation of pests and bed bugs. Resident and Resident's occupants, family, social guests, and invitees shall not damage any portion of the apartment or apartment community. Resident and Resident's occupants, family, social guests, and invitees shall not touch, damage, or trigger any automatic sprinkler head. Resident and occupants shall not use the internet or cyberspace in any manner to disparage, defame, or injure the business or business reputation of the apartment owner or Management. Resident and occupants shall not use, misuse, or appropriate the use of the owner's or Management's corporate names, logos, slogans, images, photos, internet domain names, service marks, trademarks, copyrights, or trade names. Resident and occupants shall not publish, misuse, or use any photos or video of Management employees or the apartment community or signage. Owner and Management shall be entitled to injunctive relief and damages for compensation to prevent any unauthorized publication, use or misuse, whether in part or in whole, of the corporate name, trade name, internet domain name, likeness or identity of owner or Management. Resident and occupants shall not make, post, or publish misleading, deceptive, untruthful, groundless, false, or unfair statements or commentary about the apartment community, the Management employees, the owner, or Management on or to any internet website or domain, internet blog, internet social media, newspaper, magazine, television, radio, or other news or social media. Resident is prohibited from making, publishing, stating, or posting any statement or communication that, while partially true, lacks or fails to disclose other material facts in such a way as to mislead the listener, viewer, or reader. Management shall be entitled to terminate the right of occupancy or lease of any Resident or occupant who violates any portion of this Use and Conduct provision. Resident and Resident's occupants, family, social guests, and invitees shall not store, use, or discharge any fireworks or consumer fireworks in the apartment or apartment community. Fireworks are defined as any combustible or explosive composition or any substance or combination of substances or article prepared for the purpose of producing a visible or audible effect by combustion, explosion, deflagration or detonation, including but not limited to, blank cartridges, firecrackers, torpedoes, skyrockets, bombs, sparklers, roman candles and other combustibles and explosives of like construction. Violation of this Resident's Use and Conduct provision is a material breach of this lease and constitutes a ground for terminating Resident's lease or right of possession, and Resident will be liable for any rent due through the remainder of the lease or liquidated damages (if applicable) as provided in Paragraph 26.

15. Property Loss, Insurance, and Crime

Management and the apartment owner shall not be liable for damage, theft, vandalism, or other loss of any kind to Resident's or his occupant's personal property, unless such is due to Management's negligence or intentional misconduct. Management and the apartment owner shall not be liable to Resident for crimes, injuries, loss, or damage due to criminal acts of other parties. Resident must purchase a renter's insurance policy that provides liability insurance for negligent or accidental acts and omissions for which the Resident may be liable in causing injury or damage to the owner, Management, or others. Resident should purchase property insurance for loss of or damage to Resident's own personal property. Management is not liable for any loss or damages to Resident's personal property due to theft, vandalism, bursting or leaking pipes, fire, windstorm, hail, flooding, rain, lightening, tornadoes, hurricanes, water leakage, snow, ice, running water, or overflow of water or sewage. Management shall not be liable for any injury or damage caused by such occurrences, and Resident agrees to look solely to his insurance carrier for reimbursement of his losses for such events. Management does not market, advertise, represent, offer, or provide security or law enforcement services which will prevent crime or protect Resident or Resident's personal property. Management and the owner do not represent or guarantee that the Resident is safe from crime in the neighborhood or from crime in the apartment or apartment community. Resident agrees to look solely to public law enforcement, emergency services, or fire services for police, emergency, fire, security, or protection services. Resident acknowledges that he or she has an obligation to exercise due care for his or her own safety and welfare at all times and that Management is not liable to Resident for the criminal acts of other persons. Resident

agrees that he or she will not and cannot rely on the existence or absence of security equipment or personnel as a representation of safety from crime and understands that he or she must be vigilant and exercise caution for their personal safety at all times. Resident waives and releases the apartment owner and Management for any liability, injury, loss, or damages related to crimes committed by other persons against Resident or related to allegations that the owner or Management were negligent or failed to provide security or protection to prevent crime.

16. Lead Based Paint Notification (LBPN)

If this apartment community was built prior to 1978, the LBPN addendum is incorporated by reference.

17. Flood Disclosure

Management states that the apartment has not been damaged in any manner by flooding as defined by applicable law in 3 of the last 5 years unless noted otherwise in Par. 17.

18. Pets

No animals or pets of any kind are permitted without a Pet, Service, or Assistive Animal Addendum. Management may enter the apartment at any time and remove any pet or animal which Management believes to be neglected, distressed, or endangered. Resident shall be liable for all costs of retrieving, caring for, and boarding of any pet or animal that is abandoned by Resident or removed by Management. Resident releases Management from liability of any kind when Management acts to retrieve or protect Resident's pets and animals which appear to be neglected, distressed, or endangered. Please see Par. 9 with respect to Management's policy on service, assistive and convenience animals for persons with disabilities.

19. Indemnification

Resident agrees to indemnify, defend, and hold harmless the apartment owner and Management for any loss the apartment owner or Management incur due to Resident's breach of this agreement or due to the acts and omissions of Resident and Resident's family, social guests, or invitees.

20. Failure to Act

Management has the right to insist on strict compliance with the terms of this lease at any time, even if it has previously delayed acting on Resident's breach of this lease. Management shall have sole discretion in granting and withholding permission or consent for Resident to perform his or her obligations under this lease in any manner that varies from the contractual requirements. Management at its option may condition, modify, or revoke any such permission or consent upon reasonable written notice and insist upon strict compliance with the lease terms.

21. Fees and Expenses of Litigation

In a civil action or dispossessory proceeding for breach of this lease, the prevailing party shall be entitled to attorney's fees in the amount of fifteen percent (15%) of the principal and interest owing and all expenses of litigation, including, but not limited to, court costs and administrative filing fees for evictions. All sums due from Resident to Management which are in default shall bear interest at the rate of twelve percent (12%) per annum.

22. Notices

All notices must be written, dated, and signed. **Late Rent Notice to Resident (Three Business Day Notice):** In accordance with applicable law, the Parties agree and understand that IF Resident fails to pay rent, late fees, utilities, or other charges owed to the Landlord as set forth herein, THEN Landlord may serve Resident with a "three business days notice to pay or vacate" ("Three Business Days Notice") by POSTING the Three Business Days Notice in a sealed envelope conspicuously on the door of the apartment, AND by delivering the Three Business Days Notice by any one of the following additional delivery methods: (1) by electronically sending the Three Business Days Notice to any e-mail of record provided by Resident to Landlord; (2) by personal service, such as hand delivery, to Resident; (3) by mailing via U.S. mail with adequate postage to the apartment; or (4) by certified mail, return receipt requested with adequate postage, to the apartment. The Parties further agree and understand that delivery of the Three Business Days Notice shall be effective upon POSTING on the apartment door as set forth above AND when placed in the mail, or when personally delivered, or when electronically sent by e-mail to Resident as set forth herein. Resident agrees and understands that after three business days have expired in accordance with applicable law after a Three Business Days Notice has been delivered as set forth above and if Resident has continued to refuse to pay the amount due or fails to deliver possession of the apartment, then Landlord may immediately file a legal action to recover possession of the apartment. If this paragraph conflicts with any other paragraph of this Lease, then this paragraph shall control. A "business day" means any day other than Saturday, Sunday, or legal holiday as provided by law. **Demand for Possession Notice to Resident (Demand for Possession Notice):** In accordance with applicable law, the Parties agree and understand that any type of demand for possession to Resident other than the Three Business Days Notice for failure to pay rent may be delivered by POSTING the Demand for Possession Notice in a sealed envelope conspicuously on the door of Resident's Apartment, AND by delivering the Demand for Possession Notice by any one of the following additional delivery methods: (1) by electronically sending the Demand for Possession Notice to any e-mail of record provided by Resident to Landlord; (2) by personal service, such as hand delivery, to Resident; (3) by mailing via U.S. mail with adequate postage to the apartment; and (4) by certified mail, return receipt requested, to the apartment. The Parties further agree and understand that delivery of the Demand for Possession Notice shall be effective upon POSTING on the apartment door as set forth above AND when placed in the mail, or when personally delivered or when electronically sent by e-mail to Resident as set forth herein. Resident agrees and understands that at any time after a Demand for Possession Notice has been delivered as set forth above and if Resident fails to deliver possession of the apartment, THEN Landlord may immediately file a legal action to recover possession of the apartment. If this paragraph conflicts with any other paragraph of this Lease, then this paragraph shall control. **All Other Notices to Resident including, but not limited to, Lease Violation(s) and/or Termination of Lease and/or Termination of Right of Possession Notices:** For notices which are not a Three Business Days Notice or do not contain a Demand for Possession as set forth above, the Parties agree and understand that Landlord may serve such a notice by any one of the following delivery methods: (1) by electronically sending the notice to any e-mail of record provided by Resident to Landlord; (2) by personal service, such as hand delivery, to Resident; (3) by mailing via U.S. mail with adequate postage to the apartment; (4) by certified mail, return receipt requested, to the apartment; and (5) by posting the notice in a sealed envelope conspicuously on the door of Resident's Apartment. The Parties further agree and understand that delivery of such notices shall be effective upon posting on the apartment door as set forth herein, or when placed in the mail, or when personally delivered or when electronically sent by e-mail to Resident as set forth herein. Notice shall be sent to Management at the apartment community business office. See Par. 9 with regard to the proper address for service of lawsuits. Resident shall send notices for repairs, service, maintenance, non-renewal, military transfers, and lease termination to the Management/leasing office located at the apartment community. Resident shall provide Management with Resident's updated contact and address information and forwarding address at any time requested during the lease and at the time of vacating the apartment. Resident shall provide Management with: the address of his or her new residence (where they are living); the mailing address for returning his security deposit or forwarding any notices or move-out inspection and estimate of damages and cleaning fees that exceed normal wear and tear; the name, address, and phone number of their employer; the name, address, and

phone number of a person or family member who can provide updated contact information; the Resident's cell phone and e-mails. If Resident fails to provide his or her contact information and address at the time of vacating; conceals or attempts to conceal his or her address and location; moves from the State; or cannot be located by Management, then the statute of limitation for collecting any account or money owed by Resident shall be tolled until such time as Resident provides proper notification of his address and other contact information requested. RESIDENT'S NOTICE OF NON-RENEWAL UNDER PARAGRAPH 6 OR NOTICE OF INTENT TO VACATE AND TERMINATE THE LEASE EARLY UNDER PARAGRAPH 7 MUST BE IN WRITING AND MUST BE GIVEN SO THAT THE ENDING DATE IS ON THE LAST DAY OF A CALENDAR MONTH. VERBAL NOTICES ARE NOT EFFECTIVE AND MAY NOT BE RELIED UPON BY RESIDENT UNDER ANY CIRCUMSTANCES. MILITARY SERVICE MEMBERS MAY GIVE A NOTICE TO TERMINATE AS PROVIDED IN PAR. 7 AT ANY TIME OF THE MONTH. NO MANAGEMENT EMPLOYEE IS AUTHORIZED TO VERBALLY OR UNILATERALLY WAIVE ANY NOTICE REQUIREMENT, AND RESIDENT MAY NOT RELY ON A VERBAL STATEMENT OF MANAGEMENT THAT PROPER WRITTEN NOTICE IS NOT NECESSARY. MANAGEMENT MAY, BUT IS NOT REQUIRED TO, WAIVE THE REQUIREMENT THAT NOTICES BE EFFECTIVE ONLY AS OF THE END OF A CALENDAR MONTH.

23. Repairs

Resident accepts the apartment "as is" and in habitable condition suited for residential purposes. Resident accepts full control and responsibility of the apartment leased premises and agrees to maintain the apartment in a clean, safe, and sanitary condition. Management will make repairs to the apartment with reasonable promptness upon receipt of written notice from Resident. Management's repair obligations under applicable landlord/tenant law only pertain to the apartment, and not to the common areas of the apartment community. Resident agrees and acknowledges that he or she only leased the apartment and that Resident's and Resident's occupants, family, and social guests access to amenities and common areas of the apartment community are only a permissive license to use such areas. Resident shall pay as additional rent for any cleaning or damages exceeding normal wear and tear to the premises caused by Resident and occupants that exceed normal wear and tear. Resident and Resident's occupants, family, social guests, and invitees shall not damage any portion of the leased premises or apartment community, and Resident is responsible for the cost to repair, replacement cost, and all expenses required to repair or replace the equipment, building, or property damaged. Resident is liable to and shall indemnify, defend, and hold harmless Management and the apartment owner for any damages or repairs caused by Resident or Resident's occupants, family, social guests, and invitees. Resident shall promptly pay as additional rent with the next month's rent the costs of any repairs, replacement, or damages caused by Resident or Resident's occupants, family, social guests, or invitees upon issuance of an invoice from Management. Resident may not alter the interior or exterior structure of the apartment or apartment community in any manner without the express written consent of Management. Please see Par. 9 with regard to Management's policy on disability modification requests. Resident must promptly report the need for any repairs to Management in writing before Management is obligated to make any repairs. Resident must promptly report any dampness, water leaks, or mold in the apartment to Management. Resident shall properly use the heating, ventilation, and air conditioning (HVAC) system to maintain temperate conditions so as to prevent freezing of water pipes in cold weather and to prevent mold growth or excessive humidity during warm weather. Resident is required to use air conditioning during June, July, August, and September and shall not turn off the air conditioning and open windows for purposes of cooling the apartment. Resident must inspect any fire alarm and fire extinguisher at least once per month to determine whether they are in proper working condition and report to Management the need for any need for repair or replacement. Resident shall promptly notify Management of any damage to or malfunction of any door or window locks or intrusion alarm. Resident must promptly report any evidence, knowledge, or suspected presence of bed bugs in the apartment and cooperate with Management to allow inspection and treatment of the same. Adjoining or neighboring Residents to an apartment infested with bed bugs must cooperate with Management in inspection and treatment to prevent a possible cross infestation or migration.

24. Abandonment

Resident shall not abandon the apartment, Resident's personal property, or motor vehicles. Title to any abandoned property (including, but not limited to, pets or animals) shall vest in Management. Management may store, sell, or dispose of abandoned property without notice. If Resident abandons the apartment or his or her personal property contained therein, Management shall have the right to re-key, re-enter, and re-let the apartment without filing a dispossessory warrant or obtaining a writ of possession. Management is not required to file a dispossessory proceeding in order to recover an abandoned apartment or to dispose of any abandoned property found in an abandoned apartment. Management shall have sole discretion in determining whether the Resident has abandoned the apartment. Circumstances indicative of an abandonment include, but are not limited to, Resident's unexplained absence or failure to occupy the apartment; the overall appearance and condition of the apartment; Resident's statement that he or she is moving or leaving the apartment community; failure to pay rent or utilities; discontinuance of utility service; failure to respond to Management's notices, communications, or eviction proceedings; or removal of a substantial amount of Resident's personal property.

25. Attornment, Sale, Foreclosure, Renovation, and Former Employees

Resident's rights, or, if applicable, his employment with Management, are subordinate to any deed to secure debt, sale, or contract for sale of the property. In the event the apartment community or any portion or building of the community is foreclosed, sold, placed under contract to be sold, or scheduled for substantial renovation, rehabilitation, or demolition, either Management or the new owner shall have the right to terminate the lease on 30 days' written notice. In the event that Management elects to terminate the occupancy or lease under this provision, then during the 30 day period immediately preceding either the termination date of Resident's occupancy or the termination of the lease, the Resident's rent shall be reduced by fifty percent (50%); however, if the Resident shall hold over beyond the termination date, then Resident shall owe the full rent due for said 30 day notice period plus hold over rent as provided in paragraph 12. If Resident is an employee of Management and his or her employment is terminated, then this employee lease shall also terminate, any employee rental discounts shall end, and the employee agrees to vacate the premises if requested. If permitted to stay, the former employee shall pay the current market rate rent as specified by Management at the time employment is terminated.

26. Default by Resident

Resident's violation of this lease or any addenda constitutes a default. Violations constituting a default include, but are not limited to: unauthorized occupants; non-payment of rent; improper non-renewal or termination of the lease as required by paragraphs 6 or 7; abandonment of the apartment as prohibited in paragraph 24; providing false or misleading information in the rental application; failure to pay or continue utility service as required in paragraph 10; allowing unauthorized persons access in violation of paragraph 12; any unauthorized occupants or improper use or conduct in violation of paragraph 14; or causing damages or cleaning in excess of normal wear and tear. Upon default, Management may terminate Resident's lease or right of possession by giving written notice and re-entering the apartment as provided by law. Notice to cure a default is not required but, if given, shall not waive Management's right to terminate or insist on strict compliance. Resident shall surrender possession of the premises to Management promptly on the effective date of any termination notice, remove all possessions and persons occupying the apartment, return all keys to Management by personally handing them to a Management representative, and restore Management to quiet possession of the leased premises. Notwithstanding Management's termination due to Resident's default, Resident shall remain liable for all rent, hold-over rent under paragraph 12, liquidated damages (if applicable) as provided below, unpaid utilities, rental concession, lost discounts or pay-backs, damages exceeding normal wear and tear, costs of

eviction, attorney's fees and expenses of re-letting incurred by Management as a result of Resident's default. Management, at its option, may obtain possession of the apartment through a dispossessory proceeding, either with or without first terminating the lease or right of possession. Management, at its option, may also recover possession of an abandoned apartment without filing a dispossessory proceeding by changing the locks and disposing of any abandoned property. Notwithstanding termination of the lease, commencement of a dispossessory proceeding, issuance of a writ of possession, actual physical eviction, or recovery of the abandoned premises, Resident shall remain liable for all rent accrued through the date on which possession is obtained by Management; rent through the remainder of the lease term or liquidated damages (if applicable) as provided in this paragraph; damages exceeding normal wear and tear; unpaid utilities; rental concession, lost discounts or pay-backs; costs fees, and expenses. Neither issuance of a writ of possession, actual physical eviction, or retaking possession of the apartment shall relieve Resident of liability for rent through the end of the lease term or liquidated damages (if applicable) under this paragraph. All rent, fees, damages and liquidated damages (if applicable) shall be due immediately upon demand for payment. In the event of a default by Resident, the Resident shall be liable to Management for rent through the remainder of the lease term as follows. Management may either allow the apartment to remain vacant and hold Resident liable for payment of rent through the remaining term of the lease; sue the Resident for breach of the lease and for each installment of rent as it comes due through expiration of the lease; or re-enter the premises as provided by law and re-let the apartment on Resident's behalf while holding the Resident liable for any deficiency between the contract rent and rent received through the remaining term of the lease until the re-letting. Management has the right, but not the obligation, to attempt to re-let the premises on Resident's behalf. In the event that Resident has breached or defaulted the lease and failed to terminate the lease properly as provided by law or as provided for in Paragraphs 6 or 7 of this Apartment Rental Contract, then Resident shall be liable to Management for unpaid rent due through the remainder of the lease term under this paragraph (Par. 26), and not as provided in Paragraph 7, and Management is not entitled to collect any termination (cancellation) fee or notice fee. **Liquidated Damages In Lieu of Rent Through the Remainder of the Lease Term.** Management shall not be entitled to Liquidated damages unless the Liquidated Damages Addendum has been signed by Management and Resident to indicate that the parties desire to use liquidated damages in determining the amount of rent due through the remainder of the lease term in the event of Resident's default. In the event the parties have selected liquidated damages for determining Resident's liability due to Resident's breach, then the Liquidated Damages Addendum is incorporated herein by reference, and the parties shall execute the same as a separate addendum. Management's re-entry to leased premises either under judicial process or by retaking possession after abandonment or surrender shall not relieve Resident of liability for payment of rent through the remainder of the lease term or liquidated damages (if applicable) that landlord is entitled to collect under the terms of this rental agreement. Management shall have the right to terminate the lease or right of possession of any Resident or occupant of the apartment who is arrested, indicted, charged, or convicted of any felony, crime of violence, or threatened violence; robbery; theft; dishonesty; rape; child molestation; sexual offense; illegal sale, use, or possession of drugs; illegal use or possession of a weapon; stalking; arson; criminal damage to property; vandalism; issuance of bad checks; fraud; forgery; or any other crime which could adversely affect the health, safety, or welfare of other Residents or Management staff, regardless of whether the offense occurred on or off the apartment community premises and regardless of when the offense occurred. Management shall have the right to file a dispossessory action and obtain a writ of possession based on the Resident's or occupant's conduct which constitutes a criminal violation without waiting for a criminal adjudication, finding, or decision on the criminal charges. Management shall have the right to terminate the lease of any Resident whose apartment is found to be infested with bed bugs; have a mold or water intrusion problem; be unfit for habitation; or constitute a hazard to health, safety, or welfare of any person, the apartment, the apartment community or management employees. Upon such termination, resident must promptly vacate, remove all personal property and possessions, and return possession of the apartment to Management.

27. Privacy, Disclosure, and Consent

Resident agrees that information about him or her that is known to Management or contained in his or her Resident file is not confidential, privileged, or private. Resident authorizes Management to disclose any information known or contained in the Resident file to any law enforcement agencies who request such information either with or without a subpoena; to prospective landlords or lenders who request such information in connection with approval of any rental application or home purchase; or to persons or parties who make a request for such information using discovery procedures in a civil action or subpoena in a criminal proceeding. Resident agrees that the apartment owner and Management shall have the right to obtain information from its account and business records to any Consumer Reporting Agency to be included in the Resident's consumer file and credit history, including, but not limited to, rental history, rental payments, unpaid balances, and other information. If the Resident disputes the accuracy of the information provided, then the Resident shall notify the Consumer Reporting Agency and send written notice of the dispute to Management at the address specified in Par. 9. When giving notice to Management of any dispute as to the accuracy of rental information, rental payments, disputed account balance, or other disputed information, Resident agrees to provide his or her correct names on the lease, the apartment number, complete apartment address, dates of occupancy, and clear details as to the basis of such dispute that the Consumer Reporting Agency and Management will have sufficient information to investigate, evaluate, and respond to the dispute. Resident agrees that Management shall have the right to pursue collection of any sums alleged due from Resident through employment of independent contractors as collectors and that such sums may be reported to any consumer reporting agency (credit bureau) and shown on Resident's credit report. Resident agrees that variances or inaccuracies in the amounts submitted for collection or reported to any credit bureaus do not constitute a violation of any federal or state laws pertaining to reporting or collection of such debts and that the amount alleged due may be amended or corrected at any time. Resident agrees that Management or any such collector or collection agency is expressly authorized to contact Resident by phone or mail to notify Resident of the debt or attempt collection of the same and to communicate with third parties regarding the existence of the debt, the location of Resident, or the Resident's ability to pay the debt. Resident agrees that Management or any such collector is expressly authorized to obtain a consumer report (credit report) on Resident and to obtain information on Resident's location and employment in connection with the collection of any amounts claimed due under this lease. Management's and collector's rights under this paragraph shall continue and survive independently beyond expiration or termination of the lease or Resident's occupancy of the apartment. Resident(s), their occupants, family members, and social guests hereby authorize and grant Management, their contractor(s), employee(s), and/or any third parties hired by Management, permission to take, use, and publish photographs and/or videos of Resident(s), their occupants and social guests, including but not limited to, their minor children, at events and/or activities in the common areas of the apartment community. Management is permitted to use such photographs or video for print, publication, copyright, online social media and video-based marketing materials, as well as any other form of publication or use at Management's sole discretion. Resident(s), their occupants and social guests, including their minor children, release and hold harmless Management from any reasonable expectation of privacy or confidentiality associated with the images and videos taken and used by Management. Resident(s) and their occupants, family members, and social guests acknowledge and agree they will not receive any type of financial compensation, ownership or royalties with the taking, use, marketing, or publication of any photographs or videos. Resident(s) hereby expressly authorize Management, and its successors, assigns, agents, attorneys, insurers, representatives, employees, officers, shareholders, partners, parents, subsidiaries, affiliated entities, and all agents and representatives, including any collection agency or debt collector hired by any of the preceding persons or entities, and all corporations, persons, or entities in privity with any of them (hereinafter collectively referred to as the "Authorized Entities") to communicate with Resident(s) for any reason related to the services provided by them or services to be provided in the future by them, including collection of amounts owed for said services, using an automatic telephone dialing system or an artificial or prerecorded voice at the telephone number or numbers Resident(s) provide. Resident(s) further expressly consent and authorize the Authorized Entities to communicate with

Resident(s) at any phone number or email address or other unique electronic identifier or mode that Resident(s) provide to any Authorized Entity at any time, or to use any phone number or email address or other unique electronic identifier or mode that any Authorized Entity finds or obtains on its own which is not provided by Resident. Any Authorized Entity may communicate with Resident(s) using any current or future means of communication, including, not limited to, automated telephone dialing systems, artificial or pre-recorded voices, SMS text messages, other forms of electronic messages, electronic mail directed to any internet domain address, electronic mail directed at a mobile telephone service, cellular telephone services, internet or world wide web addresses including social and business networking internet sites, or electronic messages or mail otherwise directed to Resident(s) through any medium. Resident(s) authorize any and all of the communication methods described in this paragraph even if Resident(s) will incur a fee or a cost to receive such communications. Resident(s) further promise to immediately notify the Authorized Entities if any telephone number or email address or other unique electronic identifier or mode that Resident(s) provided to any Authorized Entity changes or is no longer used by Resident.

28. Definitions

The term "Resident" includes all tenants or other persons who signed or are obligated under the lease. "His" shall also mean "her" when applicable. "Resident" refers to the tenant. The term "Management" may refer to the owner of the apartment community or to the managing agent who is under a Management contract to operate the apartment community on behalf of the owner. The legal ownership entity is different from the Management entity. The owner's managing agent may or may not have any ownership interest in the apartment community and may be an entirely independent contractor which operates the apartment community for the owner for a fee. "Occupants" are persons who are living in the apartment rental with the Resident and disclosed in the lease but have not signed the lease. The term "occupants" means persons who did not sign the lease but were disclosed and authorized to live in the apartment on a full time basis. Occupants could include family members of the Resident, but is not limited to family members, and includes roommates or other persons who are authorized to live in the apartment as disclosed in this lease. "NSF" means checks that are dishonored or returned by the bank unpaid, and is also referred to as "not sufficient funds." "Skip" means to vacate or abandon the leased premises in violation of this lease, either with or without turning in all keys and either with or without removing all personal property. "Notice period" refers to the length of time required in paragraph 6 or 7 or any other provision before a notice can take effect. The word "lease" means the Apartment Rental Contract which creates the relationship of landlord and tenant between the Resident and Management. "Leased premises" refers to the apartment Resident rented, and is also referred to as the "premises" or "lease premises," but does not include any of the common areas or other portions of the apartment community property. The term "leased premises" does not include any portions of the apartment community outside of the apartment rental unit as the Resident only has a permissive license to use the other areas and amenities of the apartment community in conjunction with the rental of the apartment. "Termination date" is the date following a notice period or the date on which Resident's lease or right of possession terminates as specified either in a non-renewal notice or a lease termination notice from Management based on Resident's default. A "social guest" is any person who is present in the Resident's apartment or on the apartment community property by express or implied invitation of the Resident or Resident's occupants, other social guests, or family members and includes anyone temporarily living or visiting Resident. The term "social guest" includes, but is not limited to, visitors and family members visiting or present in the apartment or apartment community. An "invitee" refers to a business guest or visitor who is present in the apartment or the apartment community with the express or implied invitation of the Resident for the purpose of conducting or soliciting business with or for the Resident, occupants, or social guests of the Resident. The "trade name" is the name of the apartment community and is the name or alias under which the legal owner of record does business and operates the apartment community. A "default" or "breach" of the lease and addenda means a violation of the lease provisions and gives Management the right to terminate the Resident's occupancy or lease.

29. Usufruct

This lease only creates the relationship of landlord (Management) and tenant (Resident) and does not create any ownership or transferable rights in real estate. This lease is a "usufruct," and not an estate for years.

30. Entire Agreement

This lease, any referenced addenda, and any addenda separately signed or referring to the lease or apartment shall constitute the entire agreement between the parties, and no prior negotiations, representations, or oral statements are binding. This lease may not be modified except with the express written consent of Management. The Resident is legally obligated under the terms and conditions of any addenda which he or she has signed, and the same are part of and incorporated by reference into this lease.

31. Joint and Several Liability

Each person, corporation, or roommate who signs this lease or any guarantor under a separate guarantor's agreement is jointly and severally liable for all rent or other charges which come due. Management may look to any Resident or guarantor for payment of all or a part of any obligation due without first suing or attempting to collect from any other responsible party. Management and the owner or any collection agency or attorney representing the owner or Management shall have the right to settle in whole or part all or a portion of any debt owed by one Resident without releasing or waiving its claim for the balance of the debt against another Resident, co-signor, or guarantor. Settlement or release of one Resident or Guarantor shall not release the other Resident or Guarantor from liability for the debt owed.

32. Agency Disclosure

Management is acting on behalf of the owner of the apartment community in exchange for compensation.

33. Jury Trial Waiver

Management and Resident, including all occupants, and Resident's family, social guests, and invitees, agree that a trial of any Lawsuit based on statute, common law, and/or connected to this Apartment Rental Contract shall be to a judge and not a jury.

34. Limitations of Causes of Action

Resident agrees that any cause of action against Management for breach of contract of the Apartment Rental Contract, negligence, including but not limited to personal injuries, such as a slip and fall on the premises, premises liability, property damages, failure to return the security deposit, trespass, including but not limited to, a wrongful eviction claim and a class action lawsuit, must be instituted within one year of the date any claim or cause of action arises, and any cause of action identified above filed after one year from such date shall be time barred as a matter of law. This time limit may be shorter than the law otherwise provides.

35. Know Your Neighbors

Certain individuals convicted of certain sex-related crimes are required to register their name and current address on an index maintained by the state or county in which they reside. You may access that index in order to determine whether any such individuals live in proximity to a certain location. The public may access the internet to view all sex offenders registered in the state. The public may also contact the local Sheriff to view a list of the sex offenders listed in their county.

36. Special Stipulations

Any special stipulations specified in Par. 36 shall control and supersede and control over conflicting provisions in the text of this lease.

BED BUG ADDENDUM

Addendum Date ☐ **Owner**

☐ **as Agent for the Owner of**

Property Name — enters into this Bed Bug Addendum to the Rental Contract with

("Resident")

Pertaining to House / Unit No. **located at**

This addendum is part of the Rental Contract dated

1. This Addendum is part of the Rental Contract and deals with the difficulties and associated problems when bed bugs (*cimex lectularius*) are found in or infesting a house or personal property located in the house.

2. Both Management and Resident agree they inspected the house prior to move-in and did not observe any evidence of bed bugs or a bed bug infestation.

3. Management represents and agrees that it is not aware of an infestation or presence of bed bugs in the house or building in which the house is located; or, if there was a prior infestation or presence in the house or building, it has been professionally treated by a licensed pest control vendor and is believed to be free of further infestation.

4. Resident represents and agrees that he or she has read the information about bed bugs provided by Management and is not aware of an infestation or presence of the pest in Resident's current or previous residences, home, or occupancy. Resident represents and agrees that he or she is not aware of any bed bug infestation or presence in any of his or her furniture, clothing, or personal property and possessions and has fully disclosed any previous bed bug infestation which Resident may have experienced. Resident represents that if he or she was previously living in a residence that had a bed bug infestation, that he or she has had all furniture, clothing, and personal property or belongings professionally and properly cleaned and treated by a licensed professional pest control service and believes that such items are free of further infestation. In the event Resident discloses a previous experience of bed bug infestation, Management shall have the right to see documentation of the treatment and inspect Resident's personal property and possessions to confirm the absence of bed bugs.

5. Resident acknowledges that used or discarded furniture, clothing, and personal property obtained from other owners or found abandoned and discarded can contain bed bugs which will infest the house, be extremely difficult to control, and that the costs associated with treating bed bugs and lost revenues associated with it are expensive. Resident represents and agrees that he or she shall not create or allow a condition or personal property to enter the house that will cause or allow an infestation or presence of bed bugs in the house. Resident shall not engage in risky behavior of bringing furniture, clothing, or personal property found on the street, in a dump, or acquired second hand or used without confirming the absence of bed bugs or properly and professionally cleaning and treating the items by a licensed professional pest control service before bringing such items into the house.

6. Resident shall allow Management and its pest control vendors to have access to the house at reasonable times and hours for inspection, pest control, and treatment of bed bugs. Resident and his family members, occupants, social guests, and invitees shall cooperate and shall not interfere with Management's inspections or treatments.

7. Resident shall promptly notify Management of any conditions that may indicate the presence of bed bugs in the house or in any of Resident's clothing, furniture, and personal property. Resident shall promptly notify Management of any recurring or unexplained bites, stings, irritations, sores of the skin or body which Resident believes are occurring from bed bugs or from any condition or pest believed to be within the house. Resident shall promptly notify Management if he or she discovers any condition or evidence that might indicate the presence or infestation of bed bugs or of any confirmation of bed bug presence by a pest control service or other authoritative source.

8. Upon confirmation of the presence or infestation of bed bugs, Resident must cooperate and coordinate with Management and its pest control service to treat and eliminate the bed bugs. Resident must follow all directions of Management or its vendor to clean and treat the house and building in which it is located. The Resident is required to remove or destroy personal property that cannot be treated or cleaned.

9. In the event bed bugs are determined to be in the house, Management shall have the right to terminate the lease and require Resident to vacate the house and remove all furniture, clothing, and personal belongings in order to treat the house and building. Management shall have the right to terminate the lease and obtain possession of the house — regardless of who is responsible for causing the infestation or presence of bed bugs. Due to the difficulty of treating and repetitive treatments necessary to control the infestation, Resident must vacate the house and remove all personal property and possessions to provide full access and fully treat and clean the house. Resident must vacate the premises, removing all personal property and persons in order for Management to perform pest control services. A determination of the cause or source of the bed bug infestation or presence may occur at a later date after the lease has been terminated, all personal property has been removed, and possession has been returned to Management. Resident does not have the right to withhold possession of the house and refuse to move until Management has his or her personal property and possessions treated and cleaned. Resident must first move and treat his or her personal property in accordance with widely accepted treatment methods and procedures as established by a licensed professional pest control service provider. A Resident who fails to vacate after the lease has been terminated will be liable for double holdover rent as provided in the Rental Contract.

10. Management shall have the right to select the method of treating the house, building, and any shared areas of the property for bed bugs. Resident is responsible for and must treat his or her own personal property and possessions.

11. If Resident is allowed to transfer to another rental property of the owner or Management, Resident must have his or her personal property and possessions professionally treated by a licensed pest control service prior to move-in and cooperate in preventing further infestation or spreading of bed bugs to another property or building by having all personal property and possessions treated or cleaned by a licensed professional pest control service. Resident shall cooperate in providing proof of such cleaning and treatment to Management's satisfaction. Resident will not be eligible for transfer if Resident or Resident's family members, occupants, social guests, or invitees caused or are responsible for the infestation or presence of bed bugs in the house or building.

12. If Resident or Resident's family members, occupants, social guests, or invitees are responsible for causing or introducing bed bugs into the house, Resident shall be in default of the lease and shall be liable for all rent, damages, cleaning and pest control fees, and other charges as provided in the Rental Contract. Resident shall pay all reasonable costs of cleaning and pest control treatment Management incurs to remedy Resident's breach of the Rental Contract. If Management must move other residents out of their residences in order to treat adjoining or neighboring properties, then Resident shall be liable for payment of any lost rental income and other expenses incurred by Management to relocate the neighbors and perform pest control treatment to eradicate an infestation in other residences.

13. If the Resident or Resident's family members, occupants, social guests, or invitees are not responsible for causing or introducing bed bugs into the house, Resident shall not be in default of the Rental Contract but still must vacate the house and return possession upon termination of the lease. The fact that a Resident was unaware that he or she was bringing bed bugs into the house will not relieve the Resident of liability if the Resident knew or should have known about the infestation or engaged in risky behavior that was likely to start an infestation within the house.

14. Under no circumstances shall Management or Resident be liable to each other for punitive damages for breach of contract related to bed bugs. Under no circumstances shall Management or Resident be liable to each other for punitive damages for mere negligence related to bed bugs.

15. Resident shall promptly report to Management any known or suspected bed bug infestation or presence in the house. Resident shall not try to treat the house for a bed bug infestation on his own and acknowledges that Management has the full right to select a licensed and qualified professional pest control vendor to perform treatments and cleaning of the house and building. Management shall have the right to set all conditions necessary for inspection and treatment of the premises for the presence or infestation of bed bugs. Management shall have the same right of inspection and treatment of adjacent or neighboring properties to the infestation even if those properties are not the source or cause of the known infestation. You must report any signs or suspicions of bed bugs to Management as soon as possible and cooperate in providing access for inspection and treatment. It is important that you use good housekeeping practices — clean and vacuum on a regular weekly basis.

16. If any portion or provision of this addendum is declared to be invalid or unenforceable, then the remaining portions shall be severed and survive and remain enforceable. The court shall interpret and construe the remaining portion of this addendum so as to carry out the intent and effect of the parties.

Name of Owner or Management Company

By:

Signature of Owner or Management Company

As: (Title)

Resident

Resident

Resident

Resident

Resident

Resident

Information About Bed Bugs

The scientific name for bed bugs is *cimex lectularius*. An adult bed bug is about one eighth to one quarter inch in length, somewhat oval shaped, and very flat. Adults are about the size of a small seed. They can be hard to spot and hide in cracks and holes when disturbed. Bed bugs are nocturnal, meaning that they come out at night. Adult bugs may be reddish-brown in color.

Bed bugs hatch from eggs between six and seventeen days. The bugs go through a repetitive molting process as they grow and mature. Female bugs lay eggs on a daily basis. The bugs can survive in a vacant room or abandoned furniture for long periods of time without feeding. Bed bugs are extremely hardy and can live up to 18 months without eating. Bed bugs can be found in vacant as well as occupied residences.

Bed bugs cannot fly, but move quickly and can go unnoticed because of their small size. They can enter a new space or environment by climbing onto a person's clothing or personal belongings when a person comes in contact with an infested area. Bed bugs can enter a home when someone brings in used furniture, clothing, or other personal property that has an infestation. Bed bugs can spread through cracks in walls and floors to migrate from one dwelling to another.

False claims that associate bed bugs' presence with poor hygiene have caused some residents, out of shame, to avoid notifying management of their presence. This serves only to enable the spread of bed bugs. While bed bugs are, by their very nature, more attracted to clutter, they are certainly not discouraged by cleanliness. Bottom line: bed bugs know no social and economic bounds; claims to the contrary are false.

Bed bugs reach the peak of nighttime activity just before dawn. They are drawn to warm blooded animals and people by carbon dioxide and warmth. A bed bug bite may not be noticeable at the time of the bite and usually begins to feel irritated several hours later. The bite may produce a welt or bump that is like a flea or mosquito bite. Sometimes there appears to be three bites in a row, but there is not always a pattern. Bites usually are found on the face, neck, or arms. Bed bugs are not known to carry any transmittable diseases; however, some people might have an allergic reaction to the bites.

Residents should never buy or acquire used furniture and introduce it to the home if they are not sure it is free from infestation. Never bring home furniture, couches, chairs, mattresses, beds, pillows, or clothing found abandoned or discarded. Do not keep mattresses or box springs that are infested or have holes or tears which allow the bugs to climb inside and come out at night. Do not bring into the home discarded furniture, bedding, or clothes which are found on the roadside, a dump, a garbage collection site, or abandoned.

Infestations are commonly found in bedrooms and sleeping areas. Possible signs or indications of an infestation include unexplained bites that occur while sleeping and molted skins of adult bugs. You may also see bed bugs that have recently hatched and are similar in shape to adults but are whitish and almost translucent. Eggs are very small, white, and sticky. The excrement of adult bugs is black, dark red, brown, or rust colored spotting or staining and may be seen around the seams of mattresses or bedding. You may actually observe an adult bug — they are usually found around bedding.

There are many forms of treatment to rid a home of bed bugs, but the process may require multiple applications of pesticides, chemicals, or other substances over several weeks. It may be necessary to dispose of bedding or carpeting if it cannot be properly treated. Management will decide which form of treatment to use but must have complete access to an empty home. This will require that a resident and his or her family move out and take all furniture, clothing, and personal possessions with them. The resident's personal property must be properly treated or it may result in transmitting the pest to another home. Treatment will also involve cleaning and vacuuming.

Even if the infestation is in another unit in your building, Management may need access to your home for inspection and treatment to prevent the spread of the pest. Whether you must move in order for the treatment to occur will depend on a number of factors. Management may need to inspect and observe your home in order to ensure there is no cross infestation or migration from another dwelling.

You must report any signs or suspicions of bed bugs to Management as soon as possible and cooperate in providing access for inspection and treatment.

DO NOT ATTEMPT TO TREAT BED BUG INFESTATIONS ON YOUR OWN! Under no circumstance should you attempt to eradicate bed bugs without notifying management. Health hazards associated with the misapplication of traditional and

non-traditional, chemical-based insecticides and pesticides pose too great a risk to you and your neighbors.

It is important that you use good housekeeping practices. Clean and vacuum on a regular weekly basis. It is important that you notify Management as soon as possible if you suspect bed bugs are present in the home.

COMMUNITY RULES AND REGULATIONS ADDENDUM

Addendum Date _____ ☐ **Owner**

☐ **as Agent for the Owner of** _____

Property Name — enters into this Rules Addendum to the Rental Contract ("the Lease") with

_____ ("Residents"), pertaining to

House / Unit No. _____ **located at** _____

This Addendum is part of the Rental Contract dated _____

(a) Signs: Resident shall not place or display any signs, lights, decorations, or markings on the outside of the house or on the property.

(b) Locks: Resident is prohibited from adding locks to, changing, or altering locks installed on the doors of the house without prior written permission of management.

(c) Entrances, Walks, and Lawns: Entrances, walkways, driveways, lawns, and other exterior areas shall not be obstructed, used for storage, or used for any purpose other than ingress and egress.

(d) Antennas: Satellite dishes, antennae, and aerials shall not be placed or erected on the roof or exterior of the house or any building without prior written consent.

(e) Parking: Resident agrees to abide by all parking regulations established by management. No motorcycles, trucks, vans, campers, recreational vehicles, boats, trailers, mobile homes, buses, or mechanized equipment may be allowed on the property without management's prior approval. If management has designated spaces or areas for parking, resident agrees to park only in those spaces so designated. Non-operable, abandoned, or unauthorized vehicles are not permitted on the premises. Any such vehicle may be removed by management at the expense of the resident or other person owning same, for storage or public or private sale, at management's option, and the resident or person owning same shall have no right of recourse against management therefore. The definition of non-operable, abandoned, or unauthorized vehicles shall be liberally construed in favor of management. In addition to their generally accepted definitions, "unauthorized" and "non-operable" shall also mean vehicles which:

1. Are noxious, offensive, unsightly, unpleasant, or unkempt such as could reasonably affect the appearance or rental marketability of the property, or such as could reasonably cause embarrassment, discomfort, annoyance, or nuisance to management, owners, or neighbors;
2. Are causing damage to the property or the parking area, including but not limited to oil or gas leaks, seepage or spills, and motorcycle kickstands which sink into the pavement;
3. Are not registered with management as required;
4. Are not properly parked between parallel lines or other lines marking spaces for parking;
5. Are blocking access to any prohibited areas, designated "no parking" areas, fire lanes, fire hydrants, ingress and egress travel lanes, entrances, exits, or service areas;
6. Are left on blocks or jack stands;
7. Appear to be in a state of disrepair;
8. Appear to be incapable of self-propelled movement;
9. Do not have a proper license tag, current license decal validation sticker, current state emissions inspection sticker, or minimum applicable motor vehicle insurance.

Unauthorized, non-operable, or abandoned vehicles shall not be kept, placed, stored, parked, maintained, or operated in any area of the property. The term "vehicle" includes, but is not limited to, both motorized and non-motorized vehicles such as automobiles, trucks, vans, motorcycles, boats, trailers, campers, mobile homes, motor homes, commercial trucks, buses, and heavy motorized or mechanized equipment. Further rules and regulations may be specified in a parking rules and regulations addendum, which is incorporated by reference herein and shall be effective regardless of whether it has been separately signed by the parties. An "abandoned motor vehicle" shall include, but is not limited to, any vehicle, motor vehicle, or trailer which has been left unattended on the property for a period of not less than thirty days without anyone having made a claim thereto.

(f) Storage: No goods or materials of any kind or description which are hazardous, combustible, or would increase fire risk shall be taken or placed in storage areas. Storage in such areas shall be at resident's risk, and management shall not be responsible for any loss or damage.

(g) Porch, Patio, or Deck: Any porch, patio, or deck shall be neat and clean at all times. No rugs, towels, laundry, clothing, appliances, or other items shall be stored, hung, or draped on railings or other portions of the porch, patio, or deck. Use of cooking grills with a combustible fuel source is not permitted within ten (10) feet of any building, consistent with applicable minimum fire safety standards.

(h) Recreation and Service Areas: Resident shall abide by all rules and regulations pertaining to the use of any recreational and service facilities.

(i) Resident Liable for Actions of Family, Occupants, Social Guests, or Invitees: Resident shall be responsible and liable for the conduct of his or her family, occupants, social guests, or invitees. Acts or failure to act of resident's family, occupants, or invitees in violation of this contract, any addenda, or management's rules and regulations may be deemed by management to be a breach by resident. Resident acknowledges and agrees to communicate and explain all addenda, rules and regulations, and the terms of this lease to his or her family, occupants, guests, and invitees.

(j) Window Treatments: All window treatments shall present a neutral, uniform exterior appearance and shall not detract from the marketability or appearance of the property. Resident shall not damage or remove blinds or other window treatments installed by the owner and part of the house.

(k) Water Beds: Resident shall not have or keep any water beds in the house without prior written permission of management.

(l) Conduct: Resident acknowledges that all notices required to be given shall be given in writing. Resident agrees to handle his or her communications and conduct with management, including but not limited to leasing agents, staff, maintenance personnel, or independent contractors and vendors hired by management, and with all neighbors, occupants, guests, or invitees in a lawful, courteous, and reasonable manner. Resident shall not engage in any abusive behavior, either verbal or physical, or any form of intimidation or aggression, directed at management, its agents, its employees or vendors, or directed at any neighbors, occupants, guests, invitees, or any other person on the property. If requested by management, resident agrees to promptly conduct all further business in writing. Any acts of abusive behavior, whether verbal or physical, by resident or resident's family, guests, or invitees shall be grounds for termination of this lease. Resident agrees not to damage the house or any other portion of the property, including but not limited to the physical facilities, buildings, trees, or landscape. Resident shall be liable for all acts or failure to act of his or her family, occupants, guests, or invitees which result in damages to the house or the property. Resident shall remain liable to management for any damages which exceed normal wear and tear and agrees to pay management promptly upon notice of such damages, notwithstanding whether the repairs have actually been made. Any amounts due from resident because of damage exceeding normal wear and tear shall constitute additional rent which is due upon invoicing.

(m) Amendments: Management shall have the right to amend, add, change, delete, or modify these Community Rules upon reasonable notice to Resident at a future date.

(n) Package Release Authorization: Management may refuse any delivery to the management office at management's sole discretion. If management, as an accommodation, accepts packages, shipments, parcels, and other items on resident's behalf, acceptance of such items is a gratuitous bailment and not a bailment for hire. Resident authorizes management to sign for and receive such items on resident's behalf. Management has no obligation to deliver the items to resident and may refuse to accept any item that appears to be damaged or improperly delivered. Resident is responsible for tracking delivery of all such items and agrees to pick them up promptly. Resident releases management of any liability for loss or damage of the item unless such loss or damage was solely due to or solely caused by management's gross negligence.

Signature of Parties:

Owner or Management

Name of Owner or Management Company

As Landlord

By:

Signature of Management Representative

As: (Job Title)

Residents

Resident Signature

Printed Name of Resident

Resident Signature

Printed Name of Resident

Resident Signature

Printed Name of Resident

Resident Signature

Printed Name of Resident

Resident Signature

Printed Name of Resident

Resident Signature

Printed Name of Resident

CRIME DETERRENCE HOUSING ADDENDUM

Addendum Date _____ ☐ **Owner**

☐ **as Agent for the Owner of** _____

Property Name — enters into this Crime Deterrence Addendum to the Rental Contract with

_____ ("Resident"), pertaining to

House / Unit No. _____ **located at** _____

This addendum is part of the Rental Contract dated _____ and amends the utilities paragraph of the Rental Contract.

1. Resident, any members of the resident's household, or a guest, or other person under the resident's control shall not engage in criminal activity, on or off the premises. For the purpose of this addendum, "criminal activity" includes any felony or misdemeanor as prescribed under applicable state or federal law, including but not limited to the following: stalking; possession, use, or sale of any amount of marijuana; possession, use, sale, or manufacture of any illegal drug or controlled substance; any crime considered to be of a sexual nature; being a party to a crime; criminal attempt, conspiracy, or solicitation; crimes against a person; damage to or intrusion upon property; offenses involving theft; forgery or fraudulent practices; offenses against public order and safety; offenses against public health and morals; and gang activity.
2. Resident, any member of the resident's household, or a guest, or other person under the resident's control shall not engage in any act intended to facilitate criminal activity, including drug-related criminal activity, on or off said premises.
3. Resident, or any member of resident's household, will not permit the dwelling to be used for, or to facilitate, criminal activity, including drug-related criminal activity, regardless of whether the individual engaging in such activity is a member of the household or a guest.
4. Resident, or any member of resident's household, will not engage in the manufacture, sale, or distribution of illegal drugs at any location, whether on or off said property.
5. Resident, any member of resident's household, a guest, or other person under the resident's control shall not engage in acts of violence, or threat of violence, including but not limited to the unlawful display or discharge of firearms, on or near the dwelling premises.
6. Resident, or any member of resident's household, a guest, or other person under the resident's control shall not engage in criminal gang activity as defined by applicable law.
7. **VIOLATION OF ANY OF THE ABOVE PROVISIONS IS A MATERIAL AND IRREPARABLE VIOLATION OF THE LEASE, AND GOOD CAUSE FOR IMMEDIATE TERMINATION OF THE TENANCY.** A single violation of any of the provisions of this addendum shall be deemed a serious violation and is a material and irreparable breach of the lease. It is understood and agreed that a **SINGLE** violation shall be good cause for immediate termination of the lease. Unless otherwise provided by law, proof of the violation **SHALL NOT REQUIRE CRIMINAL CONVICTION**, but shall be by a preponderance of the evidence.
8. In case of conflict between the provisions of this addendum and any other provisions of the lease, the provisions of the addendum shall govern.
9. This **LEASE ADDENDUM** is incorporated into the lease, or renewal thereof, executed or renewed at any time between Owner / Landlord / Lessor and Resident / Lessee.

_____
Name of Owner or Management Company

By: _____
Signature of Owner or Management Company

As: _____ (Title)

_____
Resident

_____
Resident

_____
Resident

_____
Resident

_____
Resident

_____
Resident

CRIME WARNING AND LIMITATION OF LIABILITY ADDENDUM

Addendum Date _____ ☐ **Owner**

☐ **as Agent for the Owner of** _____

Property Name — enters into this Crime Warning and Limitation of Liability Addendum to the Rental Contract with _____ ("Resident"), pertaining to

House / Unit No. _____ **located at** _____

This addendum is part of the Rental Contract dated _____

1. **Important — Please read this addendum before signing.** This addendum pertains to crime that may be committed in or around the property and to personal injuries or property loss sustained by the Resident as the result of that crime. This addendum requires the Resident to take reasonable steps to protect his or her safety and security, and it *limits the liability* of the Owner and managing agent or company under certain circumstances for injuries, property loss, and damages. Your signature below means that you read and understand this addendum. Although all parts of this addendum are important, please see Paragraph 9 regarding your waiver and release of the Owner and Management related to certain claims.

2. **Definitions.** The term "Resident" includes all Residents who have signed this addendum and any child, minor, person, or occupant of which the Resident is the parent or legal guardian. The term "Owner" refers to the ownership entity. If this addendum is signed by the Owner, then the Owner is also referred to as "Management." If this addendum is signed by the company or persons managing the property on behalf of and as the agent for the Owner, then "Management" refers to the managing agent of the owner. The terms "Owner" and "Management" include their respective general and limited partners, officers, directors, agents, employees, and shareholders or members. The term "security" refers to any procedure, equipment, personal property, or personnel that have or may have some function related to deterring, limiting, or preventing crime or access in, to, or near the property. "Security" includes, but is not limited to, access gates, fences, alarm or intrusion systems, surveillance cameras, digital video recorders, lighting, door and window locks, audio communication boxes, gate clickers, access codes, courtesy officers, and security officers or personnel.

3. **Owner and Management Make No Representations, Guaranties, Covenants, or Warranties About the Safety of the Property from Crime or Providing Security that Will Prevent Crime.** Resident acknowledges and agrees that neither the Owner nor Management have made any verbal or written representations, guaranties, covenants, or warranties, either express or implied, that: the property or its entrances, exits, or any portion are safe or free from crime; the neighboring community or neighborhood outside of or around the property is safe or free from crime; or security is, has been, or will be provided that will protect Resident or his property from crimes or will prevent crime from occurring in or around the property. Neither the Owner nor Management market, advertise, or represent that the Resident or Resident's occupants, social guests, visitors, or invitees will be safe or free from crime while they are in, near, at, leaving, or entering any portion of the property. Although the Owner and Management may provide certain forms of security, such security cannot deter or prevent all crimes. Crimes do occur from time to time at or near the property, but neither the Owner nor Management know when or where a crime will occur.

4. **Existence or Absence of Security Procedures, Devices, or Personnel Does Not Create an Assurance of Safety or Crime Prevention.** Resident acknowledges and agrees that the existence, presence, or absence of security procedures, devices, or personnel do not constitute any kind of implied warranty or representation from the Owner or Management that the Resident will be safe or protected from crime or that such security procedures, devices, or personnel will prevent or deter crime. Resident agrees that there is no law or contractual agreement of any kind that requires the Owner or Management to use or provide specific kinds of security procedures, devices, or personnel, and that Owner and Management are not contractually obligated to provide security to Resident under the wording of the lease or this addendum. The Owner and Management may provide certain basic security devices such as locks on doors and windows or intrusion alarm systems in the house. The Resident is responsible for checking whether such locks and intrusion alarms are functioning and must promptly report any need for repair, replacement, or maintenance. The Owner's duty to provide repairs in the house is controlled by applicable landlord and tenant law. Having parted with possession of the house when Resident took possession, Resident is responsible for giving proper notice to the Owner or Management of the need for any repairs to locks and intrusion alarm systems and for properly using them. It is Resident's responsibility to exercise due care and caution for his or her own safety at all times when entering, exiting, and inside the house by properly inspecting and using all security and safety devices. Nothing in this addendum waives or changes the Owner's duty to make repairs to the house as provided under applicable landlord and tenant law.

5. **Limitations in the Function of Access Gates and Perimeter Fencing.** Resident acknowledges and agrees that the function of any controlled or limited access gates and perimeter fencing is limited in its effectiveness as a form of security. If such access gates and fencing are present, their function is to control, limit, and deter access. Resident understands and agrees that fencing, doors, and access gates will not prevent unauthorized entry and crime, and that other persons could provide unauthorized persons entry, access codes, or opening devices. The Owner and Management have no way of knowing when or how persons who are not a resident or occupant will be provided access or whether such persons intend to commit a crime.

6. **Security Personnel and Owner or Management Employees Do Not Provide Emergency or Law Enforcement Services.** Resident acknowledges and agrees that: security personnel and Management employees are not employed to provide emergency, medical, security, protection, fire, or police services; the primary function of security personnel, if present, is to observe and report incidents as directed by the Owner and Management; Owner and Management do not offer any armed or unarmed security personnel that will keep the Resident safe and prevent crimes; and it is the responsibility of appropriate federal, state, and local law enforcement agencies to protect Resident, respond to reports of crime, deter crime, and make arrests for violations of the law.

7. **Owner and Management May Discontinue or Change Security Personnel, Devices, or Procedures Without Notice or Liability.** Owner and Management shall have the right at any time, with or without notice, to install, modify, or remove any security procedures, devices, or personnel without liability therefore. Any modification or removal shall not serve as a basis for a breach of contract or tort claim against the Owner or Management. Failure or malfunction of security to operate properly or prevent crime shall not serve as grounds for abatement of rent or for the Resident to terminate the lease. The Resident's obligation to pay rent is independent of the Owner's or Management's duties under the law.

8. **Resident Has a Duty to Exercise Due Care at All Times for His or Her Safety.** Resident acknowledges and agrees that he or she has a duty at all times to exercise due care to protect and provide for his or her own safety and property from the criminal acts of others, and that the Owner or Management cannot and do not provide police or law enforcement services. In the event Resident or his family, occupants, guests, or invitees are in need of emergency, medical, security, protection, fire, or police services, Resident has the duty to contact the appropriate governmental emergency, medical, fire, or law enforcement service or agency.

9. **Limitation of Owner's and Management's Liability.** Neither Owner nor Management shall have liability to Resident for damage or injury sustained due to the criminal acts of others. Resident expressly waives and releases Owner and Management from any liability or negligence claim based on alleged criminal acts of others, to the fullest extent allowed by law. Resident acknowledges that it is impossible for the Owner or Management to know when or how a crime may be committed or to prevent a crime from happening. The Owner and Management are not responsible or liable for the criminal acts of others who violate the law and cause injury or property loss to Resident or Resident's occupants, family members, social guests, visitors, or invitees, except as may otherwise be provided by law. This addendum limits the ability of Resident to sue for or recover civil damages from the Owner or Management for crimes committed against the Resident or loss of property by others under certain conditions. Resident agrees that the Owner and Management are not guarantors of Resident's safety and agrees to waive, release, and forego any premises liability claim for personal injuries or property loss due to crime committed by others. The waiver and release in this paragraph do not apply to the Owner's duties and liability under applicable landlord and tenant law that apply to the house. The commission of a crime against another person shall not serve as ground for abatement of rent or for the Resident to terminate the lease.

10. **Owner and Management Have No Liability for Crime Committed on Another's Property or on Public or Private Easements.** Neither Owner nor Management shall have any liability for any crime committed on or originating on property of another owner or on property adjacent to the property that is not owned by Owner. Neither Owner nor Management shall have liability for any crime that occurs on a public right of way, or on a private right of way, easement, or license held, controlled, or maintained by a federal, state, city, or county government or by another owner, private person, or public utility or agency.

11. **Off-Duty Law Enforcement Officers Are Not Employees of Owner or Management.** Resident acknowledges and agrees that any law enforcement officer who provides services of any kind to the property in exchange for discounted rent or compensation acts solely as an independent contractor and is not an employee of the Owner or Management. Officers who may be described as "courtesy officers" or who provide services while not on regular duty are not employees of the Owner or Management. To the extent any such officer exercises police powers to perform an arrest, deter a crime, or apprehend a criminal, it is performed in his or her governmental law enforcement capacity and not as an agent of the Owner or Management.

12. **Intrusion Alarms In the House Do Not Guarantee Resident's Safety from Crime.** An intrusion alarm system in the house, if any, is not a guarantee of Resident's safety from crime. If such an intrusion system was installed by Owner or Management as part of the leased premises, it is Resident's responsibility to establish his or her own monitoring contractor. The system is not monitored by the Owner, Management, any security service, or any law enforcement agency, and is not connected to any central or monitored system as part of the lease. Neither Owner nor Management shall have any duty to monitor or respond to an intrusion alarm system, nor any liability for failing to do so. Owner and Management may at any time, with or without notice, replace, discontinue, or disconnect any such alarm or intrusion system, and any such change shall not relieve Resident of liability for payment of rent nor excuse Resident from fulfilling the balance of the lease term.

13. **Owner and Management Are Not Required to Provide Notices of Crime.** Resident acknowledges and agrees that: Owner and Management are not required by law to provide written or verbal notices of crimes committed in or around the property; a decision to provide crime notices does not create a legal or contractual duty to investigate, provide information, or continue giving such notices; the failure to give notice of crime does not breach any legal, tort, or contractual duty; Resident has an affirmative obligation to perform his or her own due diligence as to crime in or around the property; and it is speculative whether the giving or receipt of a crime notice would have prevented a crime, injury, or loss. Resident acknowledges that Owner and Management do not have knowledge of every crime, as many crimes go unreported, and crimes reported only to police may not be known to the Owner or Management. Resident agrees never to assume he or she is safe from crime and to exercise due care for his or her safety at all times.

14. **Lighting Conditions Cannot Form a Basis of Liability for Crime.** The Owner and Management shall not be liable to Resident in tort or contract for the failure of a light to function properly, low lighting, or lack of lighting. Resident agrees to avoid using dark or unlighted areas until the lighting is repaired and to exercise reasonable steps for his or her safety when entering and exiting under low- or no-light conditions. Resident waives and releases the Owner and Management from any claims of negligence based on failure to provide adequate or proper lighting, and agrees that whether such lighting would have prevented a crime is speculative and cannot form the basis of liability for injury or loss due to crime.

15. **Resident Agrees to Inform Family Members, Occupants, Social Guests, Visitors, and Invitees Regarding Crime and Safety.** Resident has a duty and agrees to advise and notify his family, occupants, social guests, visitors, or invitees of all provisions in this addendum and to warn them to exercise due care for their safety at all times. Resident agrees to indemnify and hold harmless Owner and Management from any and all claims, losses, personal injuries, property loss, or damages to Resident's family, occupants, social guests, visitors, or invitees due to Resident's failure to advise or notify them of the contents of this addendum.

16. **Severability.** If any phrase, sentence, portion, provision, or paragraph of this addendum shall be found to be void or unenforceable under applicable law, then such void or unenforceable portion shall be severed, and the balance of this addendum shall be upheld as valid and enforceable so as to carry out the expressed intent of the parties. The provisions of this addendum are contractual in nature and not mere recitals.

17. **Merger of All Prior Statements.** All prior statements, representations, or agreements pertaining to security shall be void and unenforceable and are merged herein unless such representation is in writing and signed by all parties to this addendum and the Rental Contract.

18. **Incorporation by Reference into the Rental Contract.** This addendum shall be incorporated into the Rental Contract between the Resident and Owner and Management and is effective and enforceable regardless of whether it has been separately signed by the parties. The terms and provisions contained in this addendum shall remain in effect throughout Resident's occupancy, and this addendum shall not be revoked in the event Resident extends the original lease, signs a renewal contract, or signs an entirely new rental contract for continued occupancy.

19. **Resident Has Inspected or Has Had the Opportunity to Inspect the House for Security, Safety, and Crime.** Resident acknowledges and agrees that he or she has inspected or had the opportunity to inspect and investigate the house for security, safety, and crime and determined to his or her satisfaction that the security is adequate, satisfactory, and in proper working order unless otherwise noted on the Move-In inspection form or in written notice to the Owner or Management. Any comments noted on the Move-In inspection form are not a written request to repair; any request to repair must be submitted separately in writing. Neither the Owner nor Management shall have any duty to inspect, test, repair, or service door locks or latches, window locks or latches, or intrusion alarm systems inside the house until the Resident has notified the Owner or Management in writing of the need for such repairs or replacement.

20. **Resident Responsible for Any Self-Installation of an Alarm, Intrusion System, or Locks.** Resident acknowledges and agrees that if he or she installs their own locks or intrusion alarm system, such installation shall be deemed an improvement made by Resident, and Resident shall be responsible and obligated to repair and maintain any self-installed intrusion alarm system or locks. Owner and Management shall not be responsible for or obligated to repair, replace, or maintain any locks or intrusion alarm system installed by Resident or Resident's contractor.

Name of Owner or Management Company

By:

Signature of Management Representative

As: (Title)

Resident

Resident

Resident

Resident

Resident

Resident

ELECTRONIC AND DIGITAL ENTRY, ACCESS, ALARM, AND SECURITY SYSTEMS ADDENDUM

Addendum Date: ["Management"] ☐ as Owner of

☐ as Agent for the Owner of

["Property Name"] enters into this Electronic and Digital Entry, Access, Alarm, and Security Systems Addendum to the Rental Contract ["the Lease"] with

["Residents"], pertaining to

House / Unit No. located at

["Address"]. This addendum is part of the Rental Contract dated ["Date of Lease"].

1. **Important:** Please read this addendum before signing. This addendum has important information about electronic, digital, and mechanical access, alarm, and security systems and crime that may be committed in or around the property. You cannot assume that any security systems or personnel on the property will prevent crime or guarantee your safety. This addendum requires the Resident to take reasonable steps for protecting his or her safety and security at all times in order to avoid personal injuries or property loss as the result of that crime.
2. The property has certain features, services, and systems that may restrict access, have the effect of reducing unauthorized access, possibly reduce crime, and may appear to provide limited forms of security. Management and the owner have the right at any time to reduce, eliminate, modify, and add other or similar features. Some of the features, services, and systems are:
   - ☐ Courtesy Officers or Patrols
   - ☐ Intrusion Alarm Systems
   - ☐ Pedestrian or Vehicle Access Gates
   - ☐ Perimeter Fencing
   - ☐ Coded Entry Building Doors
   - ☐ Remote access devices to open gates and doors
   - ☐ Other:
   - ☐ Other:
   - ☐ Other:
   - ☐ Other:

Such features, services, and systems are not a guarantee of Resident's or Resident's occupants, family, social guests, and invitee's personal safety or security, and they are not a guarantee that Resident or Resident's occupants, family, social guests, and invitee's are safe from crime. Resident must exercise reasonable care for his or her safety at all times to avoid crime. Even properly functioning security procedures, devices, or personnel can be avoided or by-passed by persons intending to commit a crime. Additionally, from time to time such security may malfunction or require repair.

Resident agrees that he or she shall not form an assumption at any time that he or she is safe from crime or that security procedures, devices, or personnel at the property will prevent crime.

Resident acknowledges and agrees that Management has issued the following access devices, codes, cards, or information and instructed Resident on their proper use.

☐ Code or Card for Accessing Pedestrian or Vehicle Access Gates
Code No. Card Nos.

☐ Code or Card for Arming or Disarming Intrusion Alarm Systems
Code No. Card Nos.

☐ Code or Card for Accessing Building exit and entry doors
Code No. Card Nos.

☐ Code or Card for Accessing Building Doors
Code No. Card Nos.

☐ Remote Access Device or Clicker for entering Vehicle Access Gates

☐ Remote Access Device to open gates and doors

☐ Other:

☐ Other:

☐ Other:

☐ Other:

Resident agrees to return all access cards, clickers, devices, and remotes to Management at the time of vacating the premises or terminating or non-renewing his or her lease. Resident shall pay the following amounts for any access card, clicks, or digital device which is lost or not returned to Management:

$ per card for each access card No. of cards issued:

$ per clicker for each access clicker No. of clickers issued:

$ per device for each digital access device No. of access devices issued:

3. **Owner and Management Make No Representations, Guaranties, Covenants, or Warranties About the Safety of the Property from Crime or Providing Security that Will Prevent Crime.** Resident acknowledges and agrees that neither the Owner nor Management have made any verbal or written representations, guaranties, covenants or warranties, either express or implied, that: a) the property or its entrances, exits, the house, or any portion of the property are safe or free from crime; b) the neighboring properties or neighborhood outside of or around the property are safe or free from crime; or c) security is, has been, or will be provided to or for Resident that will protect Resident or his property from crimes or will prevent crime from occurring in or around the property. Neither the Owner nor Management market, advertise, or make representations that the Resident or Resident's occupants, social guests, visitors, or invitees will be safe or free from crime while they are in, near, at, leaving, or entering any portion of the property. Although the Owner and Management may provide certain forms of security at the property, such security cannot deter or prevent all crimes. Crimes do occur from time to time at or near the property, but neither the Owner nor Management know when or where a crime will occur.

4. **Existence or Absence of Security Procedures, Devices, or Personnel Does Not Create an Assurance of Safety or Crime Prevention.** Resident acknowledges and agrees that the existence, presence, or absence of security procedures, devices, or personnel in the house or at the property do not constitute any kind of implied warranty or representation from the Owner or Management that the Resident will be safe or protected from crime or that such security procedures, devices, or personnel will prevent or deter crime from occurring in the house or around or near the property.

5. **Limitations in the Function of Access Gates and Perimeter Fencing.** Resident acknowledges and agrees that the function of controlled or limited access gates and perimeter fencing around or in portions of the property is limited in its effectiveness as a form of security. If such access gates and fencing are present, their function is to control, limit, and deter access to the property. Resident understands and agrees that fencing, doors, and access gates will not prevent unauthorized entry and crime. Resident understands and acknowledges that other persons at the owner's other rental properties could or may provide other authorized and unauthorized persons entry, access codes, or electronic opening devices that give such persons access to the property. The Owner and Management have no way of knowing when or how persons who are not a resident or occupant will be provided access or whether such persons intend to commit a crime. Resident understands that unauthorized persons can gain access to the house and the property even when security procedures, devices, or personnel are present and functioning.

6. **Security Personnel and Owner or Management Employees Do Not Provide Emergency or Law Enforcement Services.** Resident acknowledges and agrees that: security personnel and Management employees are not employed to provide emergency, medical, security, protection, fire, or police services to Resident or Resident's family, occupants, social guests, visitors, and invitees; the primary function of security personnel, if present, is to observe and report on incidents as directed by the Owner and Management; Owner and Management do not offer or provide any armed or unarmed security personnel that will keep the Resident safe and prevent crimes against Resident or his property; and it is the responsibility of appropriate federal, state, and local law enforcement agencies to protect Resident; respond to Resident's report of a crime; to prevent and deter crime; and to make arrests for violation of the law.

7. **Owner and Management May Discontinue or Change Security Personnel, Devices, or Procedures Without Notice or Liability.** Owner and Management shall have the right at any time, with or without notice, to install, modify or remove any security procedures, devices, or personnel without liability therefore. Any modification or removal of security devices, personnel, or procedures shall not serve as a basis for breach of contract or tort claim against the Owner or Management. Failure or malfunction of security devices, personnel, or procedures to operate properly or prevent crime shall not serve as grounds for abatement of rent or grounds for the Resident to terminate the lease based on an alleged breach of contract. The Resident's obligation to pay rent is independent of the Owner's or Management's duties under the law.

8. **Resident Has a Duty to Exercise Due Care at All Times for His or Her Safety.** Resident acknowledges and agrees that he or she has a duty at all times to exercise due care to protect and provide for his or her own safety and property from the criminal acts of others. Resident understands and agrees that the Owner or Management cannot and do not provide police or law enforcement services. Resident acknowledges and agrees that in the event he or his family, occupants, social guests or invitees are in need of emergency, medical, security, protection, fire, or police services, he or she shall have the duty to contact the appropriate governmental emergency, medical, fire, or law enforcement service or agency.

9. **Intrusion Alarms In Resident's House Do Not Guaranty Resident's Safety from Crime.** An intrusion alarm system in the leased premises of the house, if any, is not a guarantee of Resident's safety from crime. Resident acknowledges and agrees that if such intrusion system was installed by Owner or Management in the house as part of the leased premises that it is Resident's responsibility to establish or set up his or her own monitoring contractor to provide monitoring of the alarm system. The intrusion alarm system is not monitored by the Owner, Management, or a security service provided by the Owner or Management, nor by any law enforcement agency. The intrusion alarm is not connected to any central or monitored system as part of the lease. Neither Owner nor Management shall have any liability for responding or failing to respond to or monitoring any such intrusion alarm system. Neither Owner nor Management shall have any duty to monitor or respond to an intrusion alarm system nor any liability for failure to monitor and respond to an intrusion alarm. Resident agrees that Owner and Management may at any time, either with or without notice to Resident, replace, discontinue, or disconnect any such alarm or intrusion system. Any such change, replacement, modification, discontinuance or suspension of an intrusion alarm system shall not relieve Resident of liability for payment of rent nor shall it excuse Resident from fulfilling the balance of the remaining term of the lease.

10. **Resident Has Inspected or Has Had the Opportunity to Inspect and Investigate the House and Property for Security, Safety, and Crime.** Resident acknowledges and agrees that he or she has inspected or had the opportunity to inspect and investigate the house and property for security, safety, and crime and determined to his or her satisfaction that the security is adequate, satisfactory, and in proper working order unless otherwise noted on the Move-In inspection form or unless otherwise provided in written notice to the Owner or Management.

Resident acknowledges and agrees that any comments noted on the Move-In inspection form are not a written request to repair and that any request to repair must be submitted separately in writing and make a clear request for repair or maintenance. Resident agrees that neither the Owner nor Management shall have any duty to inspect, test, repair, or service door locks or latches, window locks or latches, or intrusion alarm systems inside the lease premises of the house until the Resident has notified the Owner or Management in writing of the need for such repairs or replacement.

11. **Crime Warning and Limitation of Liability for Crime Is Incorporated by Reference into the Rental Contract.** This addendum shall be incorporated into the Rental Contract between the Resident and Owner and Management and is effective and enforceable regardless of whether this addendum has been separately signed by the parties to said lease agreement. The terms and provisions contained in this addendum shall remain in effect throughout Resident's occupancy at the property, and this addendum shall not be revoked in the event Resident extends the original lease, signs a renewal contract, or signs an entirely new rental contract for continued occupancy or residence at the property.
12. **Merger of All Prior Statements.** All prior statements, representations or agreements pertaining to security shall be void and unenforceable and are merged herein unless such representation is in writing and signed by all parties to this addendum and the Rental Contract.
13. **Any Portion of Addendum Found to Be Void or Unenforceable to Be Severed and Remainder Enforced.** If any phrase, sentence, portion, provision, or paragraph of this addendum shall be found or determined to be void or unenforceable under applicable law, then such void or unenforceable phrase, sentence, portion, provision, or paragraph shall be severed, and the balance or remainder of this addendum shall be upheld as valid and enforceable so as to carry out the expressed intent of the parties to this contract. The provisions of this addendum are contractual in nature and not mere recitals. If any phrase, sentence, portion, provision, or paragraph of this addendum is held to be void or unenforceable, the addendum in its entirety shall still be admissible in evidence in any civil lawsuit or trial with appropriate instructions as to effectiveness of the void or unenforceable portion.

Signature of Parties:

Management

Name of Management

By: Signature of Management Representative Name

As: **(Job Title)**

Residents

Printed Name of Resident:

Printed Name of Resident:

Printed Name of Resident:

Printed Name of Resident:

Printed Name of Resident:

Printed Name of Resident:

EXTENDED SPECIAL STIPULATIONS ADDENDUM

Addendum Date: _____ ["Management"] ☐ as Owner of

☐ as Agent for the Owner of _____

["Property Name"] enters into this Extended Special Stipulations Addendum to the Rental Contract ["the Lease"] with _____

["Resident"], pertaining to

House / Unit No. _____ located at _____

[Address]. This addendum is part of the Rental Contract dated _____ [Date of Lease].

The following are a continuation of the Special Stipulations of the Rental Contract and are incorporated by reference into said lease. These Special Stipulations have been added by Management or owner of the property, and were not created by any third-party association as part of their standard leases, forms, and addenda.

Signature of Parties:

Management

_____
Name of Management

By: _____
Signature of Management Representative Name

As: _____ **(Job Title)**

Residents

_____
Printed Name of Resident: _____ **(Resident Signature)**

_____
Printed Name of Resident: _____

_____
Printed Name of Resident: _____

_____
Printed Name of Resident: _____

_____
Printed Name of Resident: _____

_____
Printed Name of Resident: _____

_____
Printed Name of Resident: _____

FIRE SAFETY EQUIPMENT ACKNOWLEDGMENT AND COMPLIANCE ADDENDUM

Addendum Date: ["Management"] ☐ as Owner of

☐ as Agent for the Owner of

["Property Name"] enters into this Fire Safety Equipment Acknowledgment and Compliance Addendum to the Rental Contract ["the Lease"] with

["Residents"], pertaining to

House / Unit No. located at

["Address"]. This addendum is part of the Rental Contract dated ["Date of Lease"].

1. This Addendum is part of the above Rental Contract ["the Lease"] and a violation of the Addendum is a serious lease violation, breach, or default.
2. Resident acknowledges and agrees that his or her house has certain fire and smoke detection, suppression, or safety devices ["fire safety equipment"]. Resident was shown the location of such fire safety equipment and instructed on how to use and test them properly. Resident received and has read the written Fire Safety Information sheet. The following fire safety equipment is in the house:
   - ☐ automatic water sprinkler system and heads
   - ☐ fire extinguisher
   - ☐ single station battery powered smoke detector
   - ☐ powered smoke detector system hard wired to electrical power
   - ☐ automatic door closers
   - ☐ emergency exit signs
   - ☐ emergency exit lighting
3. Resident agrees that he or she will not remove, modify, disconnect, tamper, or damage any of such equipment or devices. Resident shall immediately report to Management in writing any damages or needed repairs for such fire safety equipment. Resident agrees to make a visual inspection of all fire safety equipment in the house on a monthly basis for observation of any readily apparent damages, replacement, or need for repairs.
4. Resident agrees to examine all windows, doors, and exits and devise a personal safety exit plans for him or her and the Resident's occupants, family members, social guests, and invitees in the event of a fire or other emergency. Resident shall communicate the emergency escape plan and instructions on how to exit the house in case of a fire or emergency.
5. Resident shall examine the fire extinguisher in the house once per month to check the pressure gauge to determine whether it needs to be discharged or whether the retaining pin to the handle is still in place. If a pressure gauge indicates the extinguisher needs to be charged or replaced, Resident shall promptly notify Management in writing.
6. Resident shall test each single station stand alone battery powered smoke detector in the house once per month by manually pressing the test button on the station to see if it emits a proper warning sound. If no sound is emitted or if the station emits an improper sound, or if the station begins beeping to indicate low batteries, Resident shall immediately report the need for repair or replacement in writing to Management. Resident agrees to keep a log or written list of each date on which he or she tested the smoke detector. If the house has smoke detectors that are part of a multiple station which is part of a hard wired electrically powered smoke alarm system, then Resident is not required to test such detectors.
7. Resident acknowledges and agrees that the fire safety equipment was present and working at the time he or she took occupancy of the house.
8. Resident may contact Management at any time to request assistance in performing any monthly visual inspection or testing of any fire safety equipment or to answer questions about fire safety in the house.

Name of Owner or Management Company

By: _____
Signature of Management Representative

As: **(Title)**

Resident _____

Resident

Resident _____

Resident

Resident _____

Resident

MOLD AND MILDEW ADDENDUM

This Mold and Mildew Addendum (the "Addendum") dated _____ is attached to and made a part of the lease dated _____ (the "Lease") by and between _____ as agent for owner of the property ("Lessor"), and _____ ("Resident") for the unit number _____ (the "Unit") in _____ (the "Property").

Resident acknowledges that it is necessary for Resident to provide appropriate climate control, keep the Unit clean, and take other measures to retard and prevent mold and mildew from accumulating in the Unit. Resident agrees to clean and dust the Unit on a regular basis and to remove visible moisture accumulation on windows, walls, floors, ceilings and other surfaces as soon as reasonably possible. Resident agrees not to block or cover any of the heating, ventilation or air-conditioning ducts in the Unit. Resident also agrees to immediately report to the management office in writing: (i) any evidence of a water leak or excessive moisture in the Unit, as well as in any storage room, garage or other area of the Property; (ii) any evidence of mold- or mildew-like growth that cannot be removed by simply applying a common household cleaner and wiping the area; (iii) any failure or malfunction in the heating, ventilation or air conditioning system in the Unit; and (iv) any inoperable doors or windows. Resident further agrees that Resident shall be responsible for damage to the Unit and Resident's property as well as injury to Resident and Occupants resulting from Resident's failure to comply with the terms of this Addendum.

A default under the terms of this Addendum shall be deemed a material default under the terms of the Lease, and Lessor shall be entitled to exercise all rights and remedies at law or in equity. Except as specifically stated herein, all other terms and conditions of the lease shall remain unchanged. In the event of any conflict between the terms of this Addendum and the terms of the Lease, the terms of this Addendum shall control. Any term that is capitalized but not defined in this Addendum that is capitalized and defined in the Lease shall have the same meaning for purposes of this Addendum as it has for purposes of the Lease.

Resident or Residents:
(all Residents must sign here)

_____
Resident's Signature

_____
Resident's Name

_____
Resident's Unit No.

_____
Resident's Signature

_____
Resident's Name

_____
Resident's Unit No.

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Resident's Signature

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Resident's Unit No.

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Resident's Unit No.

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Resident's Signature

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Resident's Name

_____
Resident's Unit No.

_____
Resident's Signature

_____
Resident's Name

_____
Resident's Unit No.

Lessor:

_____
Owner or Agent for Owner

By: _____
Authorized Representative

PET, SERVICE, OR ASSISTIVE ANIMAL ADDENDUM

Addendum Date: _____ ["Management"] ☐ as Owner of

☐ as Agent for the Owner of _____

["Property Name"] enters into this Pet, Service, or Assistive Animal Addendum to the Rental Contract ["the Lease"] with

_____

["Residents"], pertaining to House / Unit No. _____ located at _____

[Address]. This addendum is part of the Rental Contract dated _____ ["Date of Lease"].

1. **Resident's Disclosure of Animal Occupancy.** Resident discloses, represents, and warrants that he or she ☐ HAS ☐ does NOT have any pets, service, or assistive animals ("Animals") at the time of taking occupancy of the house.

   If Resident has a pet, service, or assistive animal at the time of taking occupancy of the house, then information describing the animals is listed below.

   If Resident subsequently acquires, obtains, or brings an animal, a new animal not listed below, or a replacement animal to live or occupy the house after taking occupancy, then Resident agrees to sign, update, or modify this Addendum to provide additional information about the animal and obtain permission to have such animal in the house.

   Resident acknowledges and agrees that he or she has special obligations to the animal, other residents, and Management employees when allowed to have an animal in the house.

   No Resident is permitted to have an animal occupying the house or the property without disclosing the animal and having the express written permission and approval of Management under a signed Addendum. The Resident is not allowed to add or substitute an animal without prior written consent of Management.

2. **Addendum Is Part of Rental Contract.** This Addendum is part of the above Rental Contract ["the Lease"] and a violation of the Addendum is a serious lease violation, breach, or default of the Rental Contract. If the Addendum was signed after the Resident took occupancy or signed the lease, then this Addendum shall modify and be incorporated into the above described lease.

3. **Description of Large Animals, Dogs, and Cats.** The following animals will be living in or occupying the house:

   A. Description of 1st Dog, Cat or Animal:

   Animal's Name: _____
   Kind of animal (ex. - Dog, Cat): _____
   Breed (ex. - Labrador Retriever): _____
   Age of animal: _____
   Weight of animal: _____
   Color of animal: _____
   Veterinarian: _____

   B. Description of 2nd Dog, Cat or Animal:

   Animal's Name: _____
   Kind of animal (ex. - Dog, Cat): _____
   Breed (ex. - Labrador Retriever): _____
   Age of animal: _____
   Weight of animal: _____
   Color of animal: _____
   Veterinarian: _____

   C. Description of Other Animals:

   Kind of animal (ex. - Fish, Bird): _____
   Breed (ex. - Goldfish, Parakeet): _____
   Number of Animals: _____

4. **Resident's Disclosures, Representations, and Warranty that the Animal is Safe and Poses No Threat, Risk, or Harm.** Resident represents and warrants that the animals described above: are suited for living in a residential setting and do not pose a danger or threat of any kind to any person, their property, or another animal; and have never before bitten, scratched, attacked, damaged or injured another person, personal property, or other animals. Resident represents and warrants that he or she has never had a claim or lawsuit made or filed against them or any other person or business for an injury or damage caused by or related to the animals Resident will have living in the house or present on the property. Resident represents that the animal has had all required immunizations and shots, including, but not limited to Rabies, Parvo, Distemper, and other animal diseases and that Resident will update such immunizations and shots on an annual or other regular basis. Resident agrees and understands that Management's approval of an animal to occupy the house or to be present on the property is conditional upon Resident's truthful and accurate disclosure and representations and compliance with all conditions in the lease, this addendum, and the property rules and regulations. Management would not have approved the animal for occupancy but for Resident's express warranty and representations.

5. **Equal Housing Opportunity Policy.** The owner and Management provide equal housing opportunity for qualified applicants and do not discriminate on the basis of race, color, religion, sex, national origin, familial status, disability, or any other legally recognized status under applicable law. It is the owner's and Management's policy to provide reasonable accommodations in the property's operational policies and procedures and to permit the Resident to make reasonable modifications that are necessary for the Resident and related to the disability for persons with a demonstrated disability. The Resident must request and obtain permission from the owner or management for any accommodation or modification prior to implementing the same. In general, the cost or expense of physical modifications to the house or property is the responsibility of the Resident, unless the applicable law requires the owner or Management to absorb or be responsible for the cost of such modifications. A Resident or occupant with a demonstrated disability is allowed to have an assistance animal to assist with the person's disability. A disabled Resident or occupant is allowed to have an assistance animal which has not been trained as a service animal unless the animal has a history of dangerous, vicious, or unsafe behavior. If the nature of the disability is not obvious or apparent or the manner in which the animal will provide assistance is not clear, Management has the right to request additional information regarding how the animal will assist with the resident's disability. The Resident does not have an absolute right to the specific accommodation or modification requested, and Management has the right to offer a substitute or alternate accommodation or modification with conditions that will provide adequate assurance for the safety, health, and well being of other Residents, occupants, social guests, invitees, and Management employees. No Additional Rent, Non-refundable Fee, or Animal Security Deposit is required from Residents or occupants who are disabled and have an approved service or assistance animal; however, the Resident is responsible for any and all damages and cleaning fees exceeding normal wear and tear caused by such animal.

6. **Additional Rent, Non-Refundable Fees, or Security Deposits for Animals.** Resident shall pay the following rent, non-refundable fees, or security deposits in connection with having an animal occupying the house. All such rent, fees, and deposits are in addition to those specified in the Rental Contract or other addenda; however, a disabled Resident or occupant is not required to pay any such charges, fees, or deposits for service or assist animals. None of the following rent, fees, or security deposits are applicable to disabled persons with approved service or assistive animals.

   Additional Rent: Resident shall pay $ _____ per month on the first day of each month as additional rent for the animal.

   Non-refundable Fee: Resident shall pay $ _____ as a one-time, non-refundable fee for occupancy of the animal in the house. Payment of such fee is not a security deposit, is not refundable, and does not constitute liquidated damages. Resident shall remain liable for all damages exceeding normal wear and tear to the house or property.

   Animal Security Deposit: Resident shall pay $ _____ as a security deposit for fulfillment of all terms and conditions of the Rental Contract and this Addendum. Resident's Animal Security Deposit will either be protected by a surety bond on file with the appropriate court in the jurisdiction in which the property is located or the deposit will be placed in a trust account at _____ [Name of Bank where deposit will be located].

   The deposit shall be returned to Resident as provided by law; however, Management shall have the right to apply the Animal Security Deposit to any rent, fees, charges, or damages due under the Rental Contract. Management is not limited to applying the Animal Security Deposit only to rent, fees, or damages pertaining to or caused by the animal.

7. **Removal of Animals that Are Distressed, Sick, Abused, Neglected, or Abandoned.** Resident shall not abandon any animal and shall use due care to maintain the health, safety, and welfare of the animal at all times. Management shall have the right to take any and all steps to remove and obtain veterinarian treatment, place the animal in protective care or shelter, or place an animal for adoption if Resident should abuse, neglect, or abandon the animal. Management shall have the right to take any steps to remove any animal that appears to be abandoned, neglected, abused, unattended, unsupervised, or causing injury or damage to any person, the house, the property, or any personal property. Any abandoned animal shall become the property of the owner or Management for placement with a new owner. Management shall have the right to remove from the house and board any animal that is causing excessive noise or other behavior that disturbs the quiet enjoyment of others. Management is authorized to physically pick up and remove the animal without the necessity of filing or pursuing any legal proceeding or remedy in a court of law. The Resident shall be responsible to owner and Management for all costs of care, boarding, placement, and veterinarian treatment of any abused, neglected, or abandoned animal. Resident authorizes Management to enter the house and remove any animal which is abused, neglected, or abandoned and deliver the animal to the county animal control department, Humane Society, a veterinarian, or temporary or permanent foster home, and the owner and Management shall have no liability to the Resident for removal of the animal. Management may, but is not required to, give notice to Resident of removal of the animal.

8. **Insurance and Indemnification.** Resident shall purchase and maintain a renter's insurance policy which provides a minimum of $100,000 liability insurance for any injuries or damages caused by the animal or caused by Resident's or Resident's occupants, family members, social guests, or invitees failure to supervise, control, or maintain the health, or prevent disease in the animal through proper control, care, supervision, and immunization. Resident shall indemnify, defend, and hold harmless the owner and Management from the claims of any person, business, or governmental agency for any injuries or damages caused by the animal or caused by Resident's or Resident's occupants, family members, social guests, or invitees failure to supervise, control, maintain the health, or prevent disease in the animal through proper care and immunization. The Resident shall be liable for any injuries or damages to third parties caused by the animal or the failure to supervise, control, or maintain the health, or prevent disease in the animal through proper care and immunization. Resident shall not allow the animal to damage any portion of the house or property and is responsible for paying all such damages immediately upon receipt of an invoice.

9. **Animal Rules and Regulations.** The Resident shall not violate any federal, state, or local law related to ownership or possession of an animal. In addition, Resident shall follow and obey the following rules and regulations.

   A. Resident shall control and prevent the animal from excessive barking, mewing, howling, noise, or other behavior which disrupts the quiet enjoyment of others or disrupts Management in carrying out its day-to-day business of managing the property. Resident shall not allow or permit the animal to frighten, assault, injure, bite, or attack any other person or animal.

   B. Resident shall properly feed, water, clean, care, supervise, and provide veterinarian care for their animal at all times.

   C. Resident may only have and keep a pet or animal that is considered a common and domesticated household animal or pet that is suitable for living in a residential setting. Examples of such animals are dogs, cats, small aquarium size fish, and small birds. Animals that are considered to be "domesticated" (such as, but not limited to, horses) but are otherwise uncommon household animals or are otherwise unsuited for residential living are prohibited. Wild, exotic, poisonous, endangered, or prohibited species of animals are not allowed. Snakes, spiders, lizards, reptiles, and rodents are prohibited. Resident is prohibited from owning or possessing any animal of which ownership or possession is illegal under any federal, state, or local law.

   D. Resident shall not leave the animal, dog, or cat alone, unattended, or unsupervised for more than 12 hours without water, food, and outdoor access for defecating. Resident shall not leave any animal unattended for an unreasonable period of time if the animal's age, medical condition, or health requires attention and care more frequently than every 12 hours.

   E. Resident shall not crate, cage, or keep an unattended animal, dog, or cat in a cage or crate for more than 8 hours at a time except for purposes of house training. Resident shall not crate any animal for more than 12 hours at a time without proper supervision and allowing a reasonable time out of the crate for purposes of defecation and exercise. All dogs shall be properly trained to defecate outside the house in approved areas of the property. All cats must have a litter box that is regularly cleaned. Resident shall prevent the animal from defecating on floors, walls, doors, or the fixtures of the house and keep the premises in clean, sanitary, and hygienic condition.

   F. Resident must maintain all dogs and cats on a leash and shall follow all leash laws when the animal is outside of the house or outside of an approved and enclosed animal park, if any, specifically designated for the animals. The Resident shall maintain control over his or her animal at all times to prevent any loss, damage, or injury to the animal, to other persons, to the property, or to other property. The leash used to control the animal shall not be longer than 8 feet or such other length as specified by the applicable leash law.

   G. All animals shall be properly licensed and identified with their animal's name and phone number on a collar or identification tags which are readily visible with the owner's name and phone number, regardless of whether the animal has an imbedded identification chip which can be digitally read. All dogs and cats shall have a collar or harness for attachment to a leash while outside of the house or while on the property.

   H. Resident shall clean, remove, and properly dispose of all animal feces in a clean and sanitary manner. Resident shall not allow animal excrement or urine to damage the house, the property, landscaping, flowers, shrubs, grass, walkways, driveways, porches, decks, or patios.

   I. Resident shall use any designated areas for walking and defecating if the property has specifically designated certain areas for that purpose. If no such areas are designated, then the Resident shall only use natural, un-landscaped, or wooded areas or buffers surrounding the property for defecation.

   J. Resident shall not tie or tether any animal to a patio, porch, deck, building, fence, stake, tree, stairway, shrub, or other portion of the property.

   K. Animals, other than disability service or assist animals, are not permitted inside any office or business area of the property or in any recreational facilities or amenities associated with the property.

   L. Other: _____

10. **Violation of this Addendum.** Any violation of this Addendum is a material breach of the lease agreement, and Management at its sole discretion may require Resident to remove the animal from the premises or immediately terminate the Rental Contract or Resident's right of possession and occupancy of the house as provided in the lease.

Signature of Parties:

Owner or Management

Name of Owner or Management Company
As Landlord

By: _____
Signature of Management Representative

As: _____ **(Title)**

Residents

_____
Printed Name of Resident:

_____
Printed Name of Resident:

_____
Printed Name of Resident:

_____
Printed Name of Resident:

_____
Printed Name of Resident:

_____
Printed Name of Resident:

RENTER'S INSURANCE ADDENDUM

Addendum Date: _____ ["Management"] ☐ as Owner of

☐ as Agent for the Owner of _____

["Property Name"] enters into this Renter's Insurance Addendum to the Rental Contract ["the Lease"] with

_____

["Residents"], pertaining to

House / Unit No. _____ located at _____

["Address"]. This addendum is part of the Rental Contract dated _____ ["Date of Lease"].

This Addendum is incorporated by reference into said Rental Contract and shall become part of said lease.

This Addendum is a continuation of Resident's contractual obligations under the renter's insurance provisions of the Rental Contract and shall supplement Resident's requirements under those provisions.

1. Resident must purchase and maintain a renter's insurance liability policy that provides liability insurance for negligent acts and omissions of Resident, Resident's occupants and family members which cause damage, injury, or loss to the Owner, Management, other Residents, and other social guests, visitors, invitees, vendors, and all other persons whomsoever. Renter's liability insurance provides insurance in the event Resident is responsible for negligent damage, injury, or loss which he or she causes to another person or company.
2. Resident understands and agrees that the Owner's and Management's insurance does not provide liability insurance coverage for Resident's negligent acts and omissions or damage and loss to Resident's personal property and belongings.
3. Resident agrees to purchase liability insurance in the amount of at least $ _____ and maintain such coverage throughout Resident's lease and occupancy of the house. The name of Resident's insurance carrier is _____, Policy No. _____
4. Resident is free to choose a liability insurance carrier but must provide proof of insurance to Management prior to taking occupancy of the house.
5. Resident's failure to maintain liability insurance throughout the lease or occupancy of the house shall be a default of the Rental Contract, giving Management the right to terminate Resident's lease or right of occupancy.
6. Resident may, but is not required to, purchase property damage insurance for his or her personal property and belongings.
7. Resident shall obtain a policy endorsement which names the Owner and Management as additional insureds on the renter's insurance liability policy and provide proof of the endorsement to Management at the time of signing the Rental Contract.

Signature of Parties:

Management

_____
Name of Management

By: _____
Signature of Management Representative Name

As: _____ **(Title)**

Residents

_____
Printed Name of Resident: _____

_____
Printed Name of Resident: _____

_____
Printed Name of Resident: _____

_____
Printed Name of Resident: _____

_____
Printed Name of Resident: _____

_____
Printed Name of Resident: _____ **(Resident)**

RESIDENT'S SELECTION OF PERSONAL REPRESENTATIVE DUE TO INCAPACITY, DEATH, OR ABANDONMENT ADDENDUM

Addendum Date: ["Management"] ☐ as Owner of

☐ as Agent for the Owner of

["Property Name"] enters into this Resident's Selection of Personal Representative Due to Incapacity, Death, or Abandonment Addendum to the Rental Contract ["the Lease"] with

["Resident"], pertaining to House / Unit No. located at

["Address"]. This addendum is part of the Rental Contract dated ["Date of Lease"].

Resident agrees that Management shall have the right to take action as provided in this Addendum without the necessity of a court order to obtain possession of the house by contacting Resident's Personal Representative to remove Resident's property in the event a Resident dies, is incapacitated, or abandoned the house or abandoned his personal property and belongings.

This provision shall apply if:

1. the Resident was the sole tenant occupying the house;
2. the Resident is deceased or incapacitated or the house is abandoned;
3. rent or other charges are due and unpaid; and
4. Management has not been provided notice of a court appointed legal representative or guardian for the estate or property of the Resident.

Management shall have the right to assume that no legal representative of the Resident's estate or no legal guardian exists if Management is not provided a certified copy of a legal document or court order regarding a petition for administration, no administration necessary, probate, or guardianship of the Resident's estate within 15 days of the Resident's death or incapacitation or abandonment of the house. Management is not required to contact or attempt to contact the legal heirs of the Resident and may rely on the Resident's authorization contained in this Addendum.

Management shall have the right to enter the house, remove and store Resident's personal property and possessions, or leave the personal property in the house.

Management may, but is not required to, contact Resident's Personal Representative specified below to take possession of Resident's personal property in the house, remove the property, and return possession of the house to Management.

Management reserves all rights at law and equity to obtain possession of the house by filing a dispossessory proceeding but may obtain possession as provided in this addendum. Management is not required to elect which remedy or procedure it will use to obtain possession of the house or dispose of Resident's personal property.

Resident authorizes Management to contact the following Personal Representative to take possession of Resident's personal property and possessions. Management may give the Personal Representative access to the house to remove all personal property and return possession to Management. Management shall have no liability for delivering access and possession of Resident's Personal Property to the Personal Representative upon confirmation of the Personal Representative's identity.

Neither Resident's death nor incapacity shall revoke this designation which constitutes a power of attorney coupled with an interest.

Resident hereby designates the following persons as his Personal Representative or Alternate Personal Representative to obtain possession of his personal property and possessions:

Resident 1:

1. Resident's Personal Representative Name:
   Address: Relationship to Resident:
   Phone: E-mail:
2. Resident's Personal Representative Name:
   Address: Relationship to Resident:
   Phone: E-mail:

Resident 2:

3. Resident's Personal Representative Name:
   Address: Relationship to Resident:
   Phone:
4. Resident's Personal Representative Name:
   Address: Relationship to Resident:
   Phone:

Resident 3:

5. Resident's Personal Representative Name:
   Address: Relationship to Resident:
   Phone: E-mail:
6. Resident's Personal Representative Name:
   Address: Relationship to Resident:
   Phone: E-mail:

Resident 4:

7. Resident's Personal Representative Name:
   Address: Relationship to Resident:
   Phone:
8. Resident's Personal Representative Name:
   Address: Relationship to Resident:
   Phone:

Resident 5:

9. Resident's Personal Representative Name:
   Address: Relationship to Resident:
   Phone:
10. Resident's Personal Representative Name:
    Address: Relationship to Resident:
    Phone:

Resident 6:

11. Resident's Personal Representative Name:
    Address: Relationship to Resident:
    Phone:
12. Resident's Personal Representative Name:
    Address: Relationship to Resident:
    Phone:

Signatures of Parties:

Management

Name of Management

By:
Signature of Management Representative Name

As: **(Job Title)**

Residents

Printed Name of Resident:

Printed Name of Resident:

Printed Name of Resident:

Printed Name of Resident:

Printed Name of Resident:

Printed Name of Resident:

SMOKE FREE ADDENDUM

Addendum Date: _____ ["Management"] ☐ as Owner of

☐ as Agent for the Owner of _____

["Property Name"] enters into this Smoke Free Addendum to the Rental Contract with _____

["Resident"], pertaining to

House / Unit No. _____ located at _____

[Address]. This addendum is part of the Rental Contract dated _____ [Date of Lease].

This addendum is a legal contract. Resident acknowledges that a violation could lead to termination of Resident's lease or Resident's right to continue living in the house. If Resident or someone living in or visiting the house is a smoker, Resident must carefully consider whether he or she will be able to abide by the terms of this contract.

1. **Resident's Disclosure of Smokers or Non-Smokers.**
   - ☐ Neither Resident nor anyone else who will be living in the house is a smoker.
   - ☐ Someone who will be living in the house is a smoker; however, Resident agrees to follow Management's no-smoking policy.

2. **Resident Is Prohibited from Smoking Inside the House or Any Building on the Property.** Resident is prohibited from using all forms of lighted or burning tobacco products and smoking of tobacco products inside the house or any office or business area of the property. The prohibition on use of any lighted or burning tobacco products or smoking of any tobacco products extends to all residents, their occupants, social guests, invitees and all others who are present on or in any portion of the property. The no-smoking policy and rules extend to, but are not limited to, the interior of the house, any office or business area of the property, work areas, and all other enclosed spaces on the property. Smoking of non-tobacco products which are harmful to the health, safety, and welfare of others is also prohibited by this addendum and other provisions of the Lease inside the house or any building on the property.

3. **Resident May Be Allowed to Smoke Outside of Buildings Under Certain Conditions.** Smoking is permitted only in specially designated areas outside of the buildings on the property. Other areas outside the building on the grounds may be designated as non-smoking areas by signs. Smoking is strictly prohibited in any outside areas that we designate as no-smoking either by appropriate signage or by written notice to you.

   Smoking outside of the house and buildings on the property is prohibited or allowed as follows:

   Smoking on patios, porches, decks, and limited areas attached to or outside of your house and buildings ☐ is ☐ is not permitted.

   Smoking in the following described outside areas or grounds ☐ is ☐ is not permitted: _____

   The following outside areas of the property may be used for smoking: _____

   Even though smoking may be permitted in certain limited outside areas, Management reserves the right to direct the Resident and Resident's occupants, family, social guests, and invitees to cease and desist from smoking in those areas if smoke is entering the house or buildings or if it is interfering with the health, safety, or welfare or disturbing the quiet enjoyment, or business operations of Management, other residents, or guests.

4. **Resident's Liability and Responsibility for Damages and Cleaning.** Resident is responsible for payment of all costs and damages to the house, or any other portion of the property for repair, replacement, or cleaning due to smoking or smoke related damage caused by Resident or Resident's occupants, family, guests, or invitees, regardless of whether such use was a violation of this addendum. Any costs or damages we incur related to repairs, replacement, and cleaning due to your smoking or due to Resident's violation of the no-smoking provisions of the Lease Contract are in excess of normal wear and tear. Smoke related damage, including but not limited to, the smell of tobacco smoke which permeates sheetrock, carpeting, wood, insulation, or other components of the house or building is in excess of normal wear and tear in our smoke free house.

5. **Resident's Responsibility for Loss of Rental Income and Economic Damages Regarding Others.** Resident is responsible for payment of all lost rental income or other economic and financial damages or loss to us due to smoking or smoke related damage caused by Resident or Resident's occupants, family, social guests, or invitees which results in or causes others illness or discomfort, causes others to vacate their residences, results in disruption of others' quiet enjoyment, or adversely affects others' or occupants' health, safety, or welfare.

6. **Definition of Smoking.** Smoking refers to any use or possession of a cigar, cigarette, or pipe containing tobacco or a tobacco product while that tobacco or product is burning, lighted, or ignited, regardless of whether the person using or possessing the product is inhaling or exhaling the smoke from such product. The term tobacco includes, but is not limited to, any form, compound, or synthesis of the plant of the genus Nicotiana or the species N. tabacum which is cultivated for its leaves to be used in cigarettes, cigars, or pipes. Smoking also refers to use or possession of burning, lighted, or ignited non-tobacco products if they are unlawful, noxious, offensive, unsafe, unhealthy, or irritating to other persons.

7. **Lease Termination for Violation of the Addendum.** Any violation of the no-smoking policy is a material and substantial violation of this addendum and the lease. Management has the right to terminate Resident's lease or right of occupancy of the house for any violation of this No-Smoking Addendum. Violation of the no-smoking provisions is a material and substantial default or violation of the lease. Despite the termination of Resident's lease or right of occupancy, Resident will remain liable for rent through the end of the lease term or the date on which the house is re-rented to a new occupant, whichever comes first. Resident shall be responsible for payment of rent after he or she vacates the leased premises even though he or she is no longer living in the house.
8. **Extent of Resident's Liability for Losses Due to Smoking.** Resident's responsibility for damages, cleaning, loss of rental income, and loss of other economic damages under this No-Smoking Addendum are in addition to, and not in lieu of, Resident's responsibility for any other damages or loss under the Rental Contract or any other addendum.
9. **Resident's Responsibility for Conduct of Occupants, Family Members, Social Guests, and Invitees.** Resident is responsible for communicating this no-smoking policy and for ensuring compliance with this addendum by Resident's occupants, family, social guests, and invitees.
10. **There Is No Warranty of a Smoke Free Environment.** Although Management prohibits smoking in all interior parts of the property, there is no warranty or guaranty of any kind that the house or the property is smoke free. Smoking in certain limited outside areas is allowed as provided above. Enforcement of the no-smoking policy is a joint responsibility which requires Resident's cooperation in reporting incidents or suspected violations of smoking. Resident must report violations of our no-smoking policy before Management is obligated to investigate and act, and Resident must thereafter cooperate in prosecution of such violations.

Name of Owner or Management Company

By:
Signature of Management Representative

As: **(Title)**

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature

UTILITY BILLING ADDENDUM

[THIS FORM MAY BE USED FOR SUBMETERING, ALLOCATION (RUBS), OR A COMBINATION OF SUBMETERING AND ALLOCATION. IT MAY ALSO BE USED WHEN ONLY ONE OR MORE UTILITIES ARE SUBMETERED OR ALLOCATED AND THE REST ARE BILLED DIRECTLY TO THE RESIDENT BY THE UTILITY OR SERVICE PROVIDER.]

Addendum Date: _____ ["Management"] ☐ as Owner of

☐ As Agent for the Owner of _____

["Property Name"] enters into this Utility Billing Addendum to the Rental Contract with _____

["Resident"], pertaining to House / Unit No. _____ located at _____

[Address]. This addendum is part of the Rental Contract dated _____ [Date of Lease] and amends the utility provisions of the Rental Contract.

Important Disclosure Regarding Management's Right to Select the Natural Gas Marketer (Provider). Resident (the Tenant) authorizes Management (the Landlord) to act as Resident's agent for the limited purpose of selecting the Resident's natural gas marketer; to authorize the natural gas marketer to obtain credit information on the Resident, if required by the marketer; and to enroll the Resident on the marketer's standard variable price plan for which the Resident is eligible, unless the Resident chooses another price plan for which he or she is eligible. Resident acknowledges that Management may have a business relationship with the natural gas marketer that may provide for a financial or other benefit to Management in exchange for the Resident's enrollment with the Marketer.

1. Utilities Are Billed as Additional Charges. The monthly rent due under the Rental Contract does NOT include charges for any utilities provided to the house unless specifically provided otherwise in the Rental Contract or this Addendum. Resident is solely responsible for paying the cost of all utilities and services as separate charges. Resident must pay for all utilities and services each month in addition to the amount of the base monthly rent. This addendum explains how the Resident will be billed for certain utilities by Management. Other utilities will be billed directly to the Resident from the utility provider. Payment for utilities is due as additional rent.

A. *Electricity.* Electricity will be billed:

☐ to Management and then to Resident ☐ Directly to Resident by the Utility Provider.

The name of the Utility Provider is: _____

The name of the Billing Provider is: _____

1. ***Method of Calculating Charges.*** Resident's Pro-Rata Share will be based on: _____
   a. Metering; or
   b. Estimated Usage Using an Allocation Formula; or
   c. Combination of Metering and Estimated Usage Using an Allocation Formula; or
   d. Actual cost.
2. ***Amount of Charges and Due Date.*** The amount of the monthly charge for electricity is a:
   ☐ a. FIXED AMOUNT which ☐ WILL will NOT be billed in the Amount of $ _____
   b. VARIABLE AMOUNT which WILL BE billed each month.

   The amount billed is due each month on the _____ day of the month; and is payable at the office of:
   Management ☐ Independent Billing Contractor Utility Provider named above.
3. ***Shared or Property Usage.*** The Resident's share of charges for electricity:
   ☐ DOES DOES NOT include an allocable portion of shared or property-wide usage.
4. ***Other Charges.*** Resident shall be responsible for paying the following fees in connection with this account:
   a. Account Establishment Fee $ _____
   b. Monthly Administrative Fee $ _____
   ☐ c. Monthly Service Fee $ _____

B. *Natural Gas.* Natural Gas will be billed:

to Management and then to Resident ☐ Directly to Resident by the Utility Provider.

The name of the Utility Provider is: _____

The name of the Billing Provider is: _____

1. ***Method of Calculating Charges.*** Resident's Pro-Rata Share will be based on: _____
   a. Metering; or
   b. Estimated Usage Using an Allocation Formula; or
   c. Combination of Metering and Estimated Usage Using an Allocation Formula; or
   d. Actual cost.
2. ***Amount of Charges and Due Date.*** The amount of the monthly charge for natural gas is a:
   ☐ a. FIXED AMOUNT which ☐ WILL will NOT be billed in the Amount of $ _____
   b. VARIABLE AMOUNT which WILL BE billed each month.

   The amount billed is due each month on the _____ day of the month; and is payable at the office of:
   Management ☐ Independent Billing Contractor Utility Provider named above.
3. ***Shared or Property Usage.*** The Resident's share of charges for natural gas:
   DOES DOES NOT include an allocable portion of shared or property-wide usage.
4. ***Other Charges.*** Resident shall be responsible for paying the following fees in connection with this account:
   a. Account Establishment Fee $ _____
   b. Monthly Administrative Fee $ _____
   c. Monthly Service Fee $ _____

C. ***Water/Waste Water.*** Water/Waste Water will be billed:

to Management and then to Resident Directly to Resident by the Utility Provider.

The name of the Utility Provider is:

The name of the Billing Provider is:

1. ***Method of Calculating Charges.*** Resident's Pro-Rata Share will be based on:
   a. Metering; or
   b. Estimated Usage Using an Allocation Formula; or
   c. Combination of Metering and Estimated Usage Using an Allocation Formula; or
   d. Actual cost.
2. ***Amount of Charges and Due Date.*** The amount of the monthly charge for water and waste water is a:
   a. FIXED AMOUNT which WILL will NOT be billed in the Amount of $
   b. VARIABLE AMOUNT which WILL BE billed each month.

   The amount billed is due each month on the day of the month; and is payable at the office of:

   Management Independent Billing Contractor Utility Provider named above.
3. ***Shared or Property Usage.*** The Resident's share of charges for water and waste water:

   DOES DOES NOT include an allocable portion of shared or property-wide usage.
4. ***Other Charges.*** Resident shall be responsible for paying the following fees in connection with this account:
   a. Account Establishment Fee $
   b. Monthly Administrative Fee $
   c. Monthly Service Fee $
   d. Monthly Storm Water Fee $
   e. Final Account Billing Fee $

2. Explanation of the Method for Metering or Allocating Utilities. Metering is based on reading of devices which actually measure the utility or service usage. Allocation is based on a formula that is tied to Resident's pro-rata estimated usage using such factors as the number of bedrooms and baths, number of persons occupying the house, and other factors. Where allocation applies, the formula is based on actual billing and usage. A combination of metering and allocation uses both methods. Allocation formulas are adjusted periodically to take into account changes in the charges by utilities to Management. Actual Cost is the amount charged for and billed for the service or utility. Resident acknowledges that management has disclosed the methodology for billing utilities and services prior to signing the Rental Contract and this Addendum.

3. Late Fee. A late fee shall be due on any payment which is not received by the day after the payment's due date. Resident shall pay a late fee of $ or percent of the amount billed for any utility or service payment received after its due date.

4. Additional Charges. Resident shall also pay account establishment and/or monthly service or maintenance billing fees as provided above.

5. Change of Billing Methods or Utility Provider. Management shall have the right to change the method of billing or calculating utility and service charges by giving Resident 30 days' written notice of the change. Management shall have the right to begin billing for services or utilities not previously billed. Unless provided for above, Resident is responsible for establishing and paying for any other service or utility. Management shall have the right to designate or change the Utility or Service Provider at any time.

6. Adjustments of Bills. Management shall have the right to adjust any billing by increasing or decreasing the amounts due in subsequent months.

7. Default. Resident's failure to pay any utility or service bill, late fee, account establishment charge, monthly administrative fee, or monthly service fee is a material breach of this addendum and the Rental Contract. Management has the right to refuse payment of any monthly basic rental amount unless also accompanied by a payment for any utility or service bill which is due or past due. Management shall have the same rights and remedies to enforce a default under this addendum as it has in the Rental Contract.

8. Disclosure. Billing and collection of fees and charges for some utilities may be performed on Management's behalf by an "Independent Billing Contractor" who is a third party vendor. Management will disclose the name, address, and phone number of any utility or service billing company upon written request of Resident.

9. First Month's Pro-Rated Billing. Resident shall pay a pro-rated amount of any monthly charge based on the date Resident moved into the house. If the amount due is a Fixed Amount, payment shall be due at the time of signing the lease. If the amount is based on a Variable Amount Which Is Billed each month, at Management's option the pro-rated amount shall be due either along with the next month's rent or as an estimated pro-rated amount at the time of signing the lease. If Resident abandons the house, Resident will be responsible for all charges due through the time it takes for Management to obtain possession of the house. Resident agrees that any unpaid charges which remain due after vacating the house or delivering possession to Management may be deducted from any security deposit. If there is no security deposit then the last month's billing shall be due when billed.

10. Estimated Charges. Resident agrees that no representation or warranty has been made regarding estimated usage or charges for Variable Billing. Resident may not rely on any verbal estimate of usage or charges for any Variable Billing.

11. **Service Interruption.** Management is not liable for any loss or damages Resident may incur due to outages, interruptions, or fluctuations in utilities or services to the house unless such was directly and proximately caused by Management's negligence. Resident may not withhold rent or utility and service payments because of an interruption in any utilities or services.
12. **Access to Read Meter.** If billing involves reading a meter, Resident agrees to provide Management or its Independent Billing Contractor access to the house, if necessary.
13. **Severability.** If any portion or provision of this addendum is declared to be invalid or unenforceable, then the remaining portions shall be severed, survive, and remain enforceable. The court shall interpret and construe the remaining portion of this addendum so as to carry out the intent of the parties that Resident is responsible for payment of all utilities or services used.
14. **Incorporation by Reference.** The provisions of the Rental Contract are by reference incorporated herein.

Name of Owner or Management Company

By:

Signature of Owner or Management Company

As: **(Title)**

Resident

Resident

Resident

Resident

Resident

Resident

SUBLETTING, TEMPORARY RENTALS AND ASSIGNMENT ADDENDUM

Addendum Date: _____ ["Management"] ☐ as Owner of

☐ as Agent for the Owner of _____

["Property Name"] enters into this Subletting, Temporary Rentals and Assignment Addendum to the Rental Contract with

_____

["Resident"], pertaining to House / Unit No. _____ located at _____

[Address]. This addendum is part of the Rental Agreement dated _____ [Date of Lease]. If any terms of the Lease and this Addendum conflict, then the terms of this addendum shall control. This addendum is incorporated by reference into the Rental Contract.

1. **Purpose and Acknowledgement.** The lease prohibits the assignment and subletting of the lease. This Addendum is intended to further clarify that the lease also prohibits using or leasing the house for short term or periodic rentals, hotel like or transitory accommodations, temporary or short term assignment, and temporary or short term subletting which is less than the full term of the lease to anyone who is not an authorized resident or occupant named in the lease or to anyone for commercial purposes, or to anyone in exchange for money or other valuable consideration. The lease also prohibits a housing swap under which the resident exchanges his or her house with a non-resident in exchange for the non-resident's home or housing. The lease identifies the only authorized residents and occupants who may occupy the house, and prohibits anyone other than the disclosed residents and occupants from occupying the house. Short term or periodic rentals on a transitory basis also violate the permitted uses of the house under the lease.

   Resident acknowledges, agree(s), and understands that Resident, his or her occupants, social guests, and invitees are prohibited from assigning, subletting, renting, or exchanging the house as a temporary or short term rental or housing to an unauthorized resident or occupant without Management's prior written consent. Management may withhold approval of such temporary housing in its sole discretion. Any short term or temporary assignment, subletting, rental, or exchange of the house may introduce persons onto the property who do not meet the rental qualifications or which arrangement is in violation of federal and state laws which prohibit transient use of housing which is regulated under an affordable housing program, including but not limited to, Section 8 Housing Choice Voucher and Low Income Housing Tax Credit regulations and housing programs.

2. **Prohibitions Against Short Term Rentals, Assignments, Subleases, and Exchanges.** Resident acknowledges and agrees that he or she will not assign, sublease, lease, rent, or exchange the house to another unauthorized resident or occupant for any portion of the lease or renewal term. Resident further agrees not to advertise the house or any portion of it for short term or periodic rental in any manner including, but not limited to, any internet websites or short term rental, listing, or exchange services for housing. Any person who is not the authorized Resident or Occupant and occupies any portion of the house for any period of time in exchange for compensation or consideration is not a "Guest" and is prohibited by this agreement. Resident is allowed to have overnight guests, social guests, family members, or visitors who are visiting at the invitation of an authorized Resident or occupant for a short period of time on a non-commercial basis and who are not paying consideration or compensation to the Resident or occupant in exchange for the right to use and occupy the house.

3. **Violation of this Addendum.** Assignment, subletting, rental, exchange, or use of the house in violation of this Addendum is a material breach of the lease agreement, and Management at its sole discretion may immediately terminate the Rental Contract or Resident's right of possession and occupancy of the house as provided in the lease.

4. **Indemnification and Release.** Resident agrees to release, discharge, indemnify Owner or Management from any loss, damage, liability, or claim and to pay Management's attorney's fees and expenses incurred, arising from any violation of the Lease or this Addendum.

5. **Merger of All Prior Statements.** All prior statements, representations or agreements pertaining to the right to sublease, assign, or the authorization of short term leases shall be void and unenforceable and are merged herein unless such representation is in writing and signed by all parties to this addendum and the Rental Contract. If any phrase, sentence, portion, provision, or paragraph of this addendum shall be found or determined to be void or unenforceable under applicable law, then such void or unenforceable phrase, sentence, portion, or paragraph shall be severed, and the balance or remainder of this addendum shall be upheld as valid and enforceable so as to carry out the expressed intent of the parties to this contract. The provisions of this addendum are contractual in nature and not mere recitals.

   Any Portion of Addendum Found to Be Void or Unenforceable To Be Severed and Remainder Enforced. If any phrase, sentence, portion, provision, or paragraph of this addendum is held to be void or unenforceable, the addendum in its entirety shall be admissible in evidence in any civil lawsuit or trial with appropriate instructions as to effectiveness of the void or unenforceable portion.

_____
Name of Owner or Management Company

By: _____
Signature of Owner or Management Company

As: _____ **(Title)**

Resident _____

Resident _____

Resident _____

Resident _____

Resident

Resident _____

CONSTRUCTION AND NOISE DISTURBANCE ADDENDUM

Addendum Date:

Management
["Management"] ☐ as Owner of or as Agent for the Owner of

["Property Name"] enters into this Construction and Noise Disturbance Addendum to the Rental Contract ("Lease") with Resident pertaining to House / Unit No. located at

[Address] with

["Resident"].

This addendum is part of the Rental Agreement dated [Date of Lease]. If any terms of the Lease and this Addendum conflict, then the terms of this Addendum shall control. This Addendum is incorporated by reference into the Rental Contract.

1. **Definitions.** The term "Resident" includes all Residents who have signed this addendum and any child, minor, person, or occupant of which the Resident is the parent or legal guardian. The term "Owner" refers to the ownership entity. If this addendum is signed by the Owner, then the Owner is also referred to as "Management." If this addendum is signed by the company or persons managing the property on behalf of and as the agent for the Owner, then "Management" refers to the managing agent of the owner. The terms "Owner" and "Management" include their respective general and limited partners, officers, directors, agents, employees, and shareholders or members. "Property areas" include any outdoor areas, yard, driveway, walkways, and any other areas located on the property that do not include the Resident's living space inside the house.

2. **Purpose and Acknowledgment.** This Addendum releases Owner and Management from all claims arising out of the repairs, improvements, construction, renovations, or noise by any other person, including but not limited to, contractors, construction work, deliveries, or any other third party at the house or on the property. Resident acknowledges that the house and property, including but not limited to, any outdoor or property areas, may currently or in the future be under construction, or in need of repair, renovations, or improvement. Any repairs, renovation, improvements, construction, or noise emanating by any contractor or any third-party at the house or on the property is not actionable or considered a nuisance or a breach of contract pursuant to the Rental Contract. If construction is ongoing on or near the house or property, Resident agrees that Owner and Management do not guaranty completion on a set date and time, and Owner and Management is under no obligation to complete any repairs, improvements, construction, or renovations on the property on a set date and time.

   Resident acknowledges and agrees that the house and property may be under repair, renovation, improvement, or construction, causing their use to either be limited or not available.

   Resident agrees that he or she leased the house and accepted the property and any outdoor areas as-is. The waiver and release of liability in this paragraph does not apply to the owner's or occupier of land's duties and liability under applicable landlord and tenant law that apply to the house itself.

3. **Construction Areas.** Resident agrees not to enter into any construction area where repairs, renovations, improvements, or construction is being performed. By doing so, Residents assumes the risk of all liability. Entry into any construction area where repairs, renovations, improvements, or construction is being performed shall be a material breach of the lease and subject resident to immediate termination of the lease.

4. **Acknowledgment of Noise and Disturbances.** Resident acknowledges that repairs, renovations, improvements, or construction at or near the property may create noise or other disturbances that may be an inconvenience to Resident, Resident's occupants, social guests, visitors, or invitees. These inconveniences do not excuse Resident from the obligation to pay rent, nor do they create a claim or cause of action for diminution in value, breach of lease, constructive eviction, negligence, nuisance, or any other claim whatsoever against Owner or Management.

   Resident also acknowledges that construction, repairs, or activity on neighboring properties may create noise or other disturbances that may also be an inconvenience to Resident, Resident's occupants, social guests, visitors, or invitees. These inconveniences do not excuse Resident from the obligation to pay rent, nor do they create a claim or cause of action for diminution in value, breach of contract, constructive eviction, negligence, nuisance, or any other claim whatsoever against Management or the Owner.

5. **Release.** Resident agrees to waive, release, hold harmless, and forever discharge, Management and the Owner from any loss, damages, liability, or claims related to Resident's inability to use and access any outdoor or property areas due to repairs, renovations, improvement, or construction on or near the property, including but not limited to all noise and disturbances that arise out of repairs, renovations, improvements or construction at the property.

   If Resident is disturbed due to noise or other disturbances from repairs, renovations, improvements, or construction on or near the property, or caused by a third-party, Resident agrees that he or she is not entitled to any offset for any rental obligations, or other compensation, nor shall it be the basis for any other claim or cause of action, including but not limited to diminution in value, breach of contract, constructive eviction, negligence, nuisance, or any other claim whatsoever against the Owner or Management.

   Resident covenants not to sue and acknowledges, understands, and agrees to forever waive, and release Owner and Management, its agents, owners, successors, and employees from any and all claims, including but not limited to diminution in value, breach of contract, nuisance, constructive eviction, any claim in tort, and any right to withhold rent due to the inconvenience or disturbances due to all noise, smells, or lights, including but not limited to, repairs, improvement, renovations, construction, emanating from the surrounding area that disturbs the resident's quiet enjoyment of the house. Resident understands and agrees that this includes, but is not limited to, any noise, smells, lights, deliveries, trash hauling, cooking smells, and all other disturbances that could be considered anything to disturb the Resident for any reason whatsoever.

6. **Delay of Occupancy Due to Construction, Renovation or Repair.** Resident acknowledges that the house may be delayed for occupancy due to repairs, renovations, improvements, or construction of the house. If there is a delay in delivering possession then the possession provisions of the Rental Contract shall control with regards to when rent will commence.

   Residents knowingly and voluntarily accepts the risks of any delay and the house not being ready for occupancy on the commencement date of the Rental Contract. Resident agrees that if the house is not ready on the commencement date of the lease due to repair, improvements, renovations, or construction it shall not constitute a willful failure to deliver possession. Resident waives, releases, and forever discharges Owner and Management from all claims, actions, or cause of action against Owner and Management relating to delays in delivering possession of the house.

7. **Relocation.** If the Owner or Management owns or manages another comparable rental property that is not affected by repairs, renovations, improvements, or construction, Resident may agree to transfer to that property if deemed necessary by the Owner or Management and agreed to by the Resident. In the event the parties agree to such a transfer, the payment of rent shall remain in full force and effect without abatement.

8. **Merger of All Prior Statements.** All prior statements, representations or agreements pertaining to the repairs, improvements, renovations, and construction and relating to noise shall be void and unenforceable and are merged herein unless such representation is in writing and signed by all parties to this addendum and the Rental Contract.

9. **Any Portion of Addendum Found to Be Void or Unenforceable To Be Severed and Remainder Enforced.** If any phrase, sentence, portion, provision, or paragraph of this addendum shall be found or determined to be void or unenforceable under applicable law, then such void or unenforceable phrase, sentence, portion, provision, or paragraph shall be severed, and the balance or remainder of this addendum shall be upheld as valid and enforceable so as to carry out the expressed intent of the parties to this contract. The provisions of this addendum are contractual in nature and not mere recitals. If any phrase, sentence, portion, provision, or paragraph of this addendum is held to be void or unenforceable, the addendum in its entirety shall still be admissible in evidence in any civil lawsuit or trial with appropriate instructions as to effectiveness of the void or unenforceable portion.

Management:

_____
Name of Owner or Management Company

By: _____
Signature of Owner or Management Company Representative

As: _____
Title of Owner or Management Company Representative Signing

Resident or Residents:

_____
Resident's Signature

_____
Resident's Signature

Resident's Signature

_____
Resident's Signature

Resident's Signature

_____
Resident's Signature